

|                                                                                                                                                                                                                                                                                                                                                                                                                                                          |         |                                                                                                                                            |  |                                                                                                                                                                      |                                                                     |                                                                           |                                                                  |                                |         |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------|--------------------------------------------------------------------------------------------------------------------------------------------|--|----------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------|---------------------------------------------------------------------------|------------------------------------------------------------------|--------------------------------|---------|
| <b>SOLICITATION, OFFER, AND AWARD</b>                                                                                                                                                                                                                                                                                                                                                                                                                    |         | 1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700 |  | RATING<br>DO-A6                                                                                                                                                      |                                                                     | PAGE 1 OF 66                                                              |                                                                  |                                |         |
| 2. CONTRACT NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                       |         | 3. SOLICITATION NUMBER<br>FA821326RB005                                                                                                    |  | 4. TYPE OF SOLICITATION<br><input type="checkbox"/> SEALED BID (IFB) INVITATION FOR BID<br><input checked="" type="checkbox"/> NEGOTIATED (RFP) REQUEST FOR PROPOSAL |                                                                     | 5. DATE ISSUED                                                            |                                                                  | 6. REQUISITION/PURCHASE NUMBER |         |
| 7. ISSUED BY<br>CODE<br>FA8213<br>AF8213 AFLCMC EBHK<br>CP 801 586 8482, 6072 FIR AVE BLDG 1233<br>HILL AFB, UT 84056-5820<br>UNITED STATES<br>Ellis Swenson, Email: ellis.swenson@us.af.mil Telephone: 777-0083<br>Ryan Walker, Email: ellis.swenson@us.af.mil Telephone: 777-0083                                                                                                                                                                      |         |                                                                                                                                            |  | 8. ADDRESS OFFER TO (If other than Item 7)                                                                                                                           |                                                                     |                                                                           |                                                                  |                                |         |
| <b>NOTE:</b> In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".                                                                                                                                                                                                                                                                                                                                                                  |         |                                                                                                                                            |  |                                                                                                                                                                      |                                                                     |                                                                           |                                                                  |                                |         |
| <b>SOLICITATION</b>                                                                                                                                                                                                                                                                                                                                                                                                                                      |         |                                                                                                                                            |  |                                                                                                                                                                      |                                                                     |                                                                           |                                                                  |                                |         |
| 9. Sealed offers in original and ___ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in ___ until 04:00 PM local time 14 Apr 2025. CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation. |         |                                                                                                                                            |  |                                                                                                                                                                      |                                                                     |                                                                           |                                                                  |                                |         |
| 10. FOR INFORMATION CALL                                                                                                                                                                                                                                                                                                                                                                                                                                 |         | A. NAME<br>Ellis Swenson                                                                                                                   |  | B. TELEPHONE (NO COLLECT CALLS)<br>(777) 008-3                                                                                                                       |                                                                     | C. EMAIL ADDRESS<br>ellis.swenson@us.af.mil                               |                                                                  |                                |         |
| <b>11. TABLE OF CONTENTS</b>                                                                                                                                                                                                                                                                                                                                                                                                                             |         |                                                                                                                                            |  |                                                                                                                                                                      |                                                                     |                                                                           |                                                                  |                                |         |
| <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                      | SECTION | DESCRIPTION                                                                                                                                |  | PAGE(S)                                                                                                                                                              | <input checked="" type="checkbox"/>                                 | SECTION                                                                   | DESCRIPTION                                                      |                                | PAGE(S) |
| <b>PART I - THE SCHEDULE</b>                                                                                                                                                                                                                                                                                                                                                                                                                             |         |                                                                                                                                            |  |                                                                                                                                                                      | <b>PART II - CONTRACT CLAUSES</b>                                   |                                                                           |                                                                  |                                |         |
| <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                      | A       | SOLICITATION/CONTRACT FORM                                                                                                                 |  | 1-2                                                                                                                                                                  | <input checked="" type="checkbox"/>                                 | I                                                                         | CONTRACT CLAUSES                                                 |                                | 20-47   |
| <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                      | B       | SUPPLIES OR SERVICES AND PRICES/COSTS                                                                                                      |  | 3-6                                                                                                                                                                  | <b>PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS</b> |                                                                           |                                                                  |                                |         |
| <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                      | C       | DESCRIPTION/SPECIFICATIONS/WORK STATEMENT                                                                                                  |  | 7                                                                                                                                                                    | <input checked="" type="checkbox"/>                                 | J                                                                         | LIST OF ATTACHMENTS                                              |                                | 48-49   |
| <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                      | D       | PACKAGING AND MARKING                                                                                                                      |  | 8                                                                                                                                                                    | <b>PART IV - REPRESENTATIONS AND INSTRUCTIONS</b>                   |                                                                           |                                                                  |                                |         |
| <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                      | E       | INSPECTION AND ACCEPTANCE                                                                                                                  |  | 8-12                                                                                                                                                                 | <input checked="" type="checkbox"/>                                 | K                                                                         | REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS |                                | 50-60   |
| <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                      | F       | DELIVERIES OR PERFORMANCE                                                                                                                  |  | 13-16                                                                                                                                                                | <input checked="" type="checkbox"/>                                 | L                                                                         | INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS                |                                |         |
| <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                      | G       | CONTRACT ADMINISTRATION DATA                                                                                                               |  | 17-18                                                                                                                                                                | <input checked="" type="checkbox"/>                                 | M                                                                         | EVALUATION FACTORS FOR AWARD                                     |                                | 66      |
| <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                      | H       | SPECIAL CONTRACT REQUIREMENTS                                                                                                              |  | 19                                                                                                                                                                   |                                                                     |                                                                           |                                                                  |                                |         |
| <b>OFFER (Must be fully completed by offeror)</b>                                                                                                                                                                                                                                                                                                                                                                                                        |         |                                                                                                                                            |  |                                                                                                                                                                      |                                                                     |                                                                           |                                                                  |                                |         |
| <b>NOTE:</b> Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.                                                                                                                                                                                                                                                                                                                             |         |                                                                                                                                            |  |                                                                                                                                                                      |                                                                     |                                                                           |                                                                  |                                |         |
| 12. In compliance with the above, the undersigned agrees, if this offer is accepted within ___ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.                                      |         |                                                                                                                                            |  |                                                                                                                                                                      |                                                                     |                                                                           |                                                                  |                                |         |
| 13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8)                                                                                                                                                                                                                                                                                                                                                                                  |         | 20 CALENDAR DAYS (%)                                                                                                                       |  | 30 CALENDAR DAYS (%)                                                                                                                                                 |                                                                     | 10 CALENDAR DAYS (%)                                                      |                                                                  |                                |         |
| 14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):                                                                                                                                                                                                                                                                                             |         | AMENDMENT NUMBER                                                                                                                           |  | DATE                                                                                                                                                                 |                                                                     | AMENDMENT NUMBER                                                          |                                                                  | DATE                           |         |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                          |         |                                                                                                                                            |  |                                                                                                                                                                      |                                                                     |                                                                           |                                                                  |                                |         |
| 15A. NAME AND ADDRESS OF OFFEROR                                                                                                                                                                                                                                                                                                                                                                                                                         |         | CODE                                                                                                                                       |  | FACILITY                                                                                                                                                             |                                                                     | 16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print) |                                                                  |                                |         |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                          |         |                                                                                                                                            |  |                                                                                                                                                                      |                                                                     |                                                                           |                                                                  |                                |         |
| 15B. TELEPHONE NUMBER ( )                                                                                                                                                                                                                                                                                                                                                                                                                                |         | <input type="checkbox"/> 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.                        |  |                                                                                                                                                                      |                                                                     | 17. SIGNATURE                                                             |                                                                  | 18. OFFER DATE                 |         |
| <b>AWARD (To be completed by Government)</b>                                                                                                                                                                                                                                                                                                                                                                                                             |         |                                                                                                                                            |  |                                                                                                                                                                      |                                                                     |                                                                           |                                                                  |                                |         |
| 19. ACCEPTED AS TO ITEMS NUMBERED                                                                                                                                                                                                                                                                                                                                                                                                                        |         | 20. AMOUNT                                                                                                                                 |  | 21. ACCOUNTING AND APPROPRIATION                                                                                                                                     |                                                                     |                                                                           |                                                                  |                                |         |
| 22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT:<br><input type="checkbox"/> 10 U.S.C. 3204(a) <input type="checkbox"/> 41 U.S.C. 3304(a) ( )                                                                                                                                                                                                                                                                   |         |                                                                                                                                            |  | 23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified):<br>ITEM                                                                               |                                                                     |                                                                           |                                                                  |                                |         |
| 24. ADMINISTERED BY (If other than Item 7)                                                                                                                                                                                                                                                                                                                                                                                                               |         |                                                                                                                                            |  | 25. PAYMENT WILL BE MADE BY<br>CODE                                                                                                                                  |                                                                     |                                                                           |                                                                  |                                |         |
| 26. NAME OF CONTRACTING OFFICER (Type or print)                                                                                                                                                                                                                                                                                                                                                                                                          |         |                                                                                                                                            |  | 27. UNITED STATES OF AMERICA<br>(Signature of Contracting Officer)                                                                                                   |                                                                     |                                                                           |                                                                  | 28. AWARD DATE                 |         |
| <b>IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.</b>                                                                                                                                                                                                                                                                                                                              |         |                                                                                                                                            |  |                                                                                                                                                                      |                                                                     |                                                                           |                                                                  |                                |         |
| COMPUTER GENERATED                                                                                                                                                                                                                                                                                                                                                                                                                                       |         |                                                                                                                                            |  |                                                                                                                                                                      |                                                                     |                                                                           |                                                                  |                                |         |
| Previous edition is NOT usable                                                                                                                                                                                                                                                                                                                                                                                                                           |         |                                                                                                                                            |  |                                                                                                                                                                      |                                                                     |                                                                           |                                                                  |                                |         |
| STANDARD FORM 33 (REV. 12/2022)<br>Prescribed by GSA-FAR (48 CFR) 53.214(c)                                                                                                                                                                                                                                                                                                                                                                              |         |                                                                                                                                            |  |                                                                                                                                                                      |                                                                     |                                                                           |                                                                  |                                |         |

## Section A - Solicitation/Contract Form

DRAFT MJU-76 Solicitation

NAICS: 325920

Size Standard: 750 Employees

Product Service Code: 1370

## Section B - Supplies or Services & Prices or Costs

### Additional Information/Notes

**Notice to Offeror(s)/Supplier(s):** Funds are not presently available for this effort. No award will be made under this solicitation until funds are available. The Government reserves the right to cancel this solicitation, either before or after the closing date. In the event the Government cancels this solicitation, the Government has no obligation to reimburse an offeror for any costs.

The Government anticipates the first Delivery Order to be a buy-to-budget acquisition, IAW 10 USC 2308. Future delivery orders may also be buy-to budget acquisitions.

This solicitation is anticipated to be other than full and open competition with limited sources, FAR 6.302-1, Armtec and Chemring (CAGE: 3DU30& Z3487, respectively).

All responsible sources may submit a capability statement, proposal, or quotation, which shall be considered by the agency.

Offerors must have a valid U.S. security clearance of Secret or higher in order to respond to this RFP, because the RFP includes information classified at the Secret level which will be released only to offerors possessing the appropriate clearance. All classified material must be handled in accordance with the National Industrial Security Program Operating Manual (NISPOM) (DoD 5220-22-M) and Industrial Security Regulation (DoD 5220.22-R).

**Proposal:** The Government anticipates awarding two Multiple Award Contracts (MAC) IDIQ, concurrently with the first Delivery Orders. Offeror/s are requested to complete the attached RFOP Worksheet.

**Basic Ordering Period:** The MAC IDIQ will have one five-year ordering period with a sixth year option (1-year option). Anticipated ordering period are from July 2026 through July 2031. Option year from July 2031 through July 2032.

**Ordering Amounts for MJU-76/B Thrusted Flare (NSN:1370-01-642-1574 P/N 7729436-30) Production:** The minimum and estimated maximum amounts for this indefinite delivery indefinite quantity (IDIQ) contract are as follows:

Minimum Amount: \$4,000,000

Estimated Maximum Ceiling Amount: \$250,000,000

| Item | Supplies / Services                                                                                                                                                                                                                                                                       | Estimated Quantity | Unit         | Unit Price            | Amount |
|------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|--------------|-----------------------|--------|
| 0001 | Post Award Conference - Not Separately Priced<br>DATA IAW DD 1423 Attached Exhibit A<br>Data Item No A001<br>Delivery, Inspection, and Acceptance in accordance with DD 1423<br><br>Form Number: DD 1423 Exhibit A<br>Product Service Code: 1370<br>Pricing Arrangement: Firm Fixed Price | 1                  | Data Records | Not Separately Priced |        |
| 0002 | Measurement System Evaluation - Administrative Portion<br>DATA IAW DD 1423 Attached to Basic Exhibit B<br>Data Item No B001<br>Delivery, Inspection, and Acceptance in accordance with DD 1423                                                                                            | 1                  | Data Records | To Be Negotiated      |        |

|        |                                                                                                                                                                                                                                                                                                                                                                                                    |   |      |                     |  |
|--------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---|------|---------------------|--|
|        | Engineering Data List: DD 1423<br>Product Service Code: 1370<br>Pricing Arrangement: Firm Fixed Price                                                                                                                                                                                                                                                                                              |   |      |                     |  |
| 0003   | First Article / Measurement System<br>Evaluation Testing<br>Delivery, Inspection, and<br>Acceptance in accordance with DD<br>1423<br><br>Product Service Code: 1370<br>Pricing Arrangement: Firm Fixed Price                                                                                                                                                                                       | 1 | Lot  | To Be<br>Negotiated |  |
| 000301 | First Article Production<br>NSN: 1370-01-677-6009<br>P/N 201825310                                                                                                                                                                                                                                                                                                                                 |   |      |                     |  |
| 000302 | First Article Test Report<br>IAW 1423 CDRL Attached to Basic -<br>Exhibit C<br>Data Item No C001                                                                                                                                                                                                                                                                                                   |   |      |                     |  |
| 000303 | MSE (Testing Portion)<br>IAW 1423 CDRL Attached to Basic<br>Exhibit D<br>Data Item No D001                                                                                                                                                                                                                                                                                                         |   |      |                     |  |
| 0004   | USG Production Units<br>MJU-76/B Flare, Countermeasure<br>NSN: 1370-01-677-6009<br>P/N 201825310<br><br>This CLIN will be competed at the<br>delivery order level. Total<br>evaluated price from each awardee<br>will be used to determine both<br>quantity and total price.<br><br>National Stock Number: 1370-01-642-1574<br>Product Service Code: 1370<br>Pricing Arrangement: Firm Fixed Price | 1 | Each | To Be<br>Negotiated |  |
| 0005   | FMS Production Units<br>MJU-76/B Flare, Countermeasure<br>NSN: 1370-01-677-6009<br>P/N 201825310<br><br>This CLIN will be competed at the<br>delivery order level. Total<br>evaluated price from each awardee<br>will be used to determine both<br>quantity and total price<br><br>National Stock Number: 1370-01-642-1574<br>Product Service Code: 1370<br>Pricing Arrangement: Firm Fixed Price  | 1 | Each | To Be<br>Negotiated |  |
| 0006   | FMS Source Directed Production<br>Units<br>MJU-76/B Flare, Countermeasure<br>NSN: 1370-01-677-6009<br>P/N 201825310<br><br>Quantity and Price will be<br>determined at the Delivery Order<br>level.<br><br>National Stock Number: 1370-01-642-1574<br>Product Service Code: 1370<br>Pricing Arrangement: Firm Fixed Price                                                                          | 1 | Each | To Be<br>Negotiated |  |
|        |                                                                                                                                                                                                                                                                                                                                                                                                    |   |      |                     |  |

|                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |    |      |                       |  |
|-----------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----|------|-----------------------|--|
| 0007                  | <p>DATA - Not Separately Priced<br/>IAW DD1423 Attached to Basic<br/>E001 - Government Furnished Material (GFM) Consumption Report<br/>E002 - Ammunition Data Card (ADC)<br/>E003 - Performance Oriented Packaging (POP) Test Report<br/>E004 - Engineering Change Proposal (ECP)<br/>E005 - Notice of Revision (NOR)<br/>E006 - Request for Variance (RFV)<br/>E007 - Supplier's Configuration Management (CM) Plan<br/>E008 - Test/Inspection Report<br/>E009 - Failure Summary and Analysis Report<br/>E010 - Acceptance and Description Sheets<br/>E011 - Quality Assurance Program Plan (QAPP)<br/>E012 - Diminishing Manufacturing Sources and Material Shortages (DMSMS) Management Plan<br/>E013 - Obsolescence Alert Notice<br/>E014 - Diminishing Manufacturing Sources and Material Shortages (DMSMS) Health Assessment Repo<br/>E015 - Report, Record of Meeting/Minutes<br/>E016 - Production Status Report<br/>E017 - Report of Receipts, Inventory, Adjustments and Shipments of Government Property<br/>E018 - Integrated Program Management Data and Analysis Report (IPMDAR)<br/>E019 - Statistical Process Control (SPC) Plan<br/>E020 - MSE updates</p> <p>Product Service Code: 1370<br/>Pricing Arrangement: Firm Fixed Price</p> | 20 | Lot  | Not Separately Priced |  |
| Option Line Item 1003 | <p>Option Period 12<br/>Option Year<br/>First Article / Measurement System Evaluation Testing<br/>Delivery, Inspection, and Acceptance in accordance with DD 1423</p> <p>Product Service Code: 1370<br/>Pricing Arrangement: Firm Fixed Price</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 1  | Lot  | To Be Negotiated      |  |
| Option Line Item 1004 | <p>Option Period 12<br/>Option Year<br/>USG Production Units<br/>MJU-76/B Flare, Countermeasure<br/>NSN: 1370-01-677-6009<br/>P/N 201825310</p> <p>This CLIN will be competed at the delivery order level. Total evaluated price from each awardee will be used to determine both quantity and total price.</p> <p>National Stock Number: 1370-01-642-1574<br/>Product Service Code: 1370<br/>Pricing Arrangement: Firm Fixed Price</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | 1  | Each | To Be Negotiated      |  |
| 1005                  | <p>Option Year<br/>FMS Production Units<br/>MJU-76/B Flare, Countermeasure<br/>NSN: 1370-01-677-6009<br/>P/N 201825310</p> <p>This CLIN will be competed at the delivery order level. Total evaluated price from each awardee</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 1  | Each | To Be Negotiated      |  |

|                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |    |      |                       |  |
|-----------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----|------|-----------------------|--|
|                       | <p>will be used to determine both quantity and total price</p> <p>National Stock Number: 1370-01-642-1574<br/>Product Service Code: 1370<br/>Pricing Arrangement: Firm Fixed Price</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |    |      |                       |  |
| 1006                  | <p>Option Year<br/>FMS Source Directed Production Units<br/>MJU-76/B Flare, Countermeasure<br/>NSN: 1370-01-677-6009<br/>P/N 201825310</p> <p>Quantity and Price will be determined at the Delivery Order level.</p> <p>National Stock Number: 1370-01-642-1574<br/>Product Service Code: 1370<br/>Pricing Arrangement: Firm Fixed Price</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 1  | Each | To Be Negotiated      |  |
| Option Line Item 1007 | <p>Option Period 12<br/>Option Year<br/>DATA - Not Separately Priced<br/>IAW DD1423 Attached to Basic<br/>E001 - Government Furnished Material (GFM) Consumption Report<br/>E002 - Ammunition Data Card (ADC)<br/>E003 - Performance Oriented Packaging (POP) Test Report<br/>E004 - Engineering Change Proposal (ECP)<br/>E005 - Notice of Revision (NOR)<br/>E006 - Request for Variance (RFV)<br/>E007 - Supplier's Configuration Management (CM) Plan<br/>E008 - Test/Inspection Report<br/>E009 - Failure Summary and Analysis Report<br/>E010 - Acceptance and Description Sheets<br/>E011 - Quality Assurance Program Plan (QAPP)<br/>E012 - Diminishing Manufacturing Sources and Material Shortages (DMSMS) Management Plan<br/>E013 - Obsolescence Alert Notice<br/>E014 - Diminishing Manufacturing Sources and Material Shortages (DMSMS) Health Assessment Report<br/>E015 - Report, Record of Meeting/Minutes<br/>E016 - Production Status Report<br/>E017 - Report of Receipts, Inventory, Adjustments and Shipments of Government Property<br/>E018 - Integrated Program Management Data and Analysis Report (IPMDAR)<br/>E019 - Statistical Process Control (SPC) Plan<br/>E020 - MSE updates</p> <p>Product Service Code: 1370<br/>Pricing Arrangement: Firm Fixed Price</p> | 20 | Lot  | Not Separately Priced |  |

## Section C - Description/Specifications/Statement of Work

### Requirements

This requirement is to establish a MAC IDIQ for a 5 year ordering period with a 6th year option ordering period . This is a firm fixed price requirement for MJU-76/B Thrusted Flare for USG and FMS. The estimated maximum for the IDIQ is \$250 Million.

## Section D - Packaging and Marking

## Section E - Inspection and Acceptance

### FAR Clauses Incorporated by Reference

| Number    | Title                               | Effective Date | Alternate/<br>Deviation | Variation<br>Effective<br>Date |
|-----------|-------------------------------------|----------------|-------------------------|--------------------------------|
| 52.246-2  | Inspection of Supplies-Fixed-Price. | Aug 1996       |                         |                                |
| 52.246-16 | Responsibility for Supplies.        | Apr 1984       |                         |                                |

### FAR Clauses Incorporated by Full Text

|                  |                                                   |                   |
|------------------|---------------------------------------------------|-------------------|
| <b>52.246-11</b> | <b>Higher-Level Contract Quality Requirement.</b> | <b>(Dec 2014)</b> |
|------------------|---------------------------------------------------|-------------------|

Higher-Level Contract Quality Requirement (Dec 2014)

(a) The Contractor shall comply with the higher-level quality standard(s) listed below.

\_\_\_\_[Contracting Officer insert the title, number (if any), date, and tailoring (if any) of the higher-level quality standards.]

(b) The Contractor shall include applicable requirements of the higher-level quality standard(s) listed in paragraph (a) of this clause and the requirement to flow down such standards, as applicable, to lower-tier subcontracts, in-

(1) Any subcontract for critical and complex items (see 46.203(b) and (c)); or

(2) When the technical requirements of a subcontract require-

(i) Control of such things as design, work operations, in-process control, testing, and inspection; or

(ii) Attention to such factors as organization, planning, work instructions, documentation control, and advanced metrology.

(End of clause)

#### Overall Contract Inspection/Acceptance Locations

|      |                                                                                                                                                                                                                                                                                                                                                            |
|------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 0001 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: IAW DD 1423</p> <p>DoDAAC: FA8213<br/>CountryCode: USA</p> <p>FA8213 AFLCMC EBHK<br/>CP 801 777 4162, 6072 FIR AVE BLDG 1233<br/>HILL AFB, UT 84056-5820<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email: AFLCMC.EBHJC.Distro@us.af.mil<br/>Telephone: 8015861040</p> |
| 0002 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: IAW DD1423</p> <p>DoDAAC: FA8213<br/>CountryCode: USA</p> <p>FA8213 AFLCMC EBHK</p>                                                                                                                                                                                    |



|      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|      | <p>CP 801 777 4162, 6072 FIR AVE BLDG 1233<br/>HILL AFB, UT 84056-5820<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email: AFLCMC.EBHJC.Distro@us.af.mil</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 0003 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Source<br/>Instructions: IAW DD1423</p> <p>DoDAAC: FA8213<br/>CountryCode: USA</p> <p>FA8213 AFLCMC EBHK<br/>CP 801 777 4162, 6072 FIR AVE BLDG 1233<br/>HILL AFB, UT 84056-5820<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email: AFLCMC.EBHJC.Distro@us.af.mil<br/>Telephone: 8015861040</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 0004 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: There are multiple Inspection and Acceptance sites for this requirement per the Performance Specification document (PRF 201825310B).</p> <p>IAW PRF201825310B Table 1 note 15:</p> <p>15 Government testing shipping information.</p> <p>Navy NSWC Crane<br/>Bldg. 2390<br/>300 Highway 361<br/>Crane, In 47522-5001</p> <p>Aging and Surveillance shipping information.<br/>W53XMD<br/>CONDITION CODE "D"<br/>MARK FOR FG5 ACCOUNT OP6<br/>CRANE ARMY AMMUNITION ACTIVITY<br/>BLDG 2074 300 HWY 361<br/>CRANE, IN 47522-5099</p> <p>China Lake flight test shipping information.<br/>NMC DET CHINA LAKE<br/>Attn: Kathryn McNabb<br/>Building 31060<br/>1 Administration Circle<br/>China Lake, CA 93555-6001</p> <p>DoDAAC: W53XMD<br/>CountryCode: USA</p> <p>W39Z CRANE ARMY AMMO ACTIVITY<br/>RECEIVING, BLDG 3608 300 HWY 361<br/>CRANE, IN 47522-5099<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email: AFLCMC.EBHC.CMFlares@us.af.mil</p> |
| 0005 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: There are multiple Inspection and Acceptance sites for this requirement per the Performance Specification document (PRF 201825310B).</p> <p>IAW PRF201825310B Table 1 note 15:</p> <p>15 Government testing shipping information.</p> <p>Navy NSWC Crane<br/>Bldg. 2390<br/>300 Highway 361<br/>Crane, In 47522-5001</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |

|      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|      | <p>Aging and Surveillance shipping information.<br/>W53XMD<br/>CONDITION CODE "D"<br/>MARK FOR FG5 ACCOUNT OP6<br/>CRANE ARMY AMMUNITION ACTIVITY<br/>BLDG 2074 300 HWY 361<br/>CRANE, IN 47522-5099</p> <p>China Lake flight test shipping information.<br/>NMC DET CHINA LAKE<br/>Attn: Kathryn McNabb<br/>Building 31060<br/>1 Administration Circle<br/>China Lake, CA 93555-6001</p> <p>DoDAAC: W53XMD<br/>CountryCode: USA</p> <p>W39Z CRANE ARMY AMMO ACTIVITY<br/>RECEIVING, BLDG 3608 300 HWY 361<br/>CRANE, IN 47522-5099<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email: AFLCMC.EBHC.CMFlares@us.af.mil</p>                                                                                                                                                                                                                                                                                                                                                                                                              |
| 0006 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: There are multiple Inspection and Acceptance sites for this requirement per the Performance Specification document (PRF 201825310B).</p> <p>IAW PRF201825310B Table 1 note 15:</p> <p>15 Government testing shipping information.</p> <p>Navy NSWC Crane<br/>Bldg. 2390<br/>300 Highway 361<br/>Crane, In 47522-5001</p> <p>Aging and Surveillance shipping information.<br/>W53XMD<br/>CONDITION CODE "D"<br/>MARK FOR FG5 ACCOUNT OP6<br/>CRANE ARMY AMMUNITION ACTIVITY<br/>BLDG 2074 300 HWY 361<br/>CRANE, IN 47522-5099</p> <p>China Lake flight test shipping information.<br/>NMC DET CHINA LAKE<br/>Attn: Kathryn McNabb<br/>Building 31060<br/>1 Administration Circle<br/>China Lake, CA 93555-6001</p> <p>DoDAAC: W53XMD<br/>CountryCode: USA</p> <p>W39Z CRANE ARMY AMMO ACTIVITY<br/>RECEIVING, BLDG 3608 300 HWY 361<br/>CRANE, IN 47522-5099<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email: AFLCMC.EBHC.CMFlares@us.af.mil</p> |
| 0007 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: IAW DD1423</p> <p>DoDAAC: FA8213<br/>CountryCode: USA</p> <p>FA8213 AFLCMC EBHK<br/>CP 801 777 4162, 6072 FIR AVE BLDG 1233<br/>HILL AFB, UT 84056-5820<br/>UNITED STATES</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |

|                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|--------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                          | <p>Tyson Pesnell<br/>Email: AFLCMC.EBHJC.Distro@us.af.mil</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| Option Line Item<br>1003 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Source<br/>Instructions: IAW DD1423</p> <p>DoDAAC: FA8213<br/>CountryCode: USA</p> <p>FA8213 AFLCMC EBHK<br/>CP 801 777 4162, 6072 FIR AVE BLDG 1233<br/>HILL AFB, UT 84056-5820<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email: AFLCMC.EBHJC.Distro@us.af.mil<br/>Telephone: 8015861040</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| Option Line Item<br>1004 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: There are multiple Inspection and Acceptance sites for this requirement per the Performance Specification document (PRF 201825310B).</p> <p>IAW PRF201825310B Table 1 note 15:</p> <p>15 Government testing shipping information.</p> <p>Navy NSWC Crane<br/>Bldg. 2390<br/>300 Highway 361<br/>Crane, In 47522-5001</p> <p>Aging and Surveillance shipping information.<br/>W53XMD<br/>CONDITION CODE "D"<br/>MARK FOR FG5 ACCOUNT OP6<br/>CRANE ARMY AMMUNITION ACTIVITY<br/>BLDG 2074 300 HWY 361<br/>CRANE, IN 47522-5099</p> <p>China Lake flight test shipping information.<br/>NMC DET CHINA LAKE<br/>Attn: Kathryn McNabb<br/>Building 31060<br/>1 Administration Circle<br/>China Lake, CA 93555-6001</p> <p>DoDAAC: W53XMD<br/>CountryCode: USA</p> <p>W39Z CRANE ARMY AMMO ACTIVITY<br/>RECEIVING, BLDG 3608 300 HWY 361<br/>CRANE, IN 47522-5099<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email: AFLCMC.EBHC.CMFlares@us.af.mil</p> |
| 1005                     | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: There are multiple Inspection and Acceptance sites for this requirement per the Performance Specification document (PRF 201825310B).</p> <p>IAW PRF201825310B Table 1 note 15:</p> <p>15 Government testing shipping information.</p> <p>Navy NSWC Crane<br/>Bldg. 2390<br/>300 Highway 361<br/>Crane, In 47522-5001</p> <p>Aging and Surveillance shipping information.<br/>W53XMD<br/>CONDITION CODE "D"</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

|                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|--------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                          | <p>MARK FOR FG5 ACCOUNT OP6<br/>CRANE ARMY AMMUNITION ACTIVITY<br/>BLDG 2074 300 HWY 361<br/>CRANE, IN 47522-5099</p> <p>China Lake flight test shipping information.<br/>NMC DET CHINA LAKE<br/>Attn: Kathryn McNabb<br/>Building 31060<br/>1 Administration Circle<br/>China Lake, CA 93555-6001</p> <p>DoDAAC: W53XMD<br/>CountryCode: USA</p> <p>W39Z CRANE ARMY AMMO ACTIVITY<br/>RECEIVING, BLDG 3608 300 HWY 361<br/>CRANE, IN 47522-5099<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email: AFLCMC.EBHC.CMFlares@us.af.mil</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 1006                     | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: There are multiple Inspection and Acceptance sites for this requirement per the Performance Specification document (PRF 201825310B).</p> <p>IAW PRF201825310B Table 1 note 15:</p> <p>15 Government testing shipping information.</p> <p>Navy NSWC Crane<br/>Bldg. 2390<br/>300 Highway 361<br/>Crane, In 47522-5001</p> <p>Aging and Surveillance shipping information.<br/>W53XMD<br/>CONDITION CODE "D"<br/>MARK FOR FG5 ACCOUNT OP6<br/>CRANE ARMY AMMUNITION ACTIVITY<br/>BLDG 2074 300 HWY 361<br/>CRANE, IN 47522-5099</p> <p>China Lake flight test shipping information.<br/>NMC DET CHINA LAKE<br/>Attn: Kathryn McNabb<br/>Building 31060<br/>1 Administration Circle<br/>China Lake, CA 93555-6001</p> <p>DoDAAC: W53XMD<br/>CountryCode: USA</p> <p>W39Z CRANE ARMY AMMO ACTIVITY<br/>RECEIVING, BLDG 3608 300 HWY 361<br/>CRANE, IN 47522-5099<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email: AFLCMC.EBHC.CMFlares@us.af.mil</p> |
| Option Line Item<br>1007 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: IAW DD1423</p> <p>DoDAAC: FA8213<br/>CountryCode: USA</p> <p>FA8213 AFLCMC EBHK<br/>CP 801 777 4162, 6072 FIR AVE BLDG 1233<br/>HILL AFB, UT 84056-5820<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email: AFLCMC.EBHJC.Distro@us.af.mil</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

## Section F - Deliveries or Performance

| Line Item | Delivery Schedule                                                                                                                                                                                     | Estimated Quantity | Address and POC                                                                                                                                                                                                                           | Special Handling/Notes                   |
|-----------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------|
| 0001      | <p>Delivery Schedule<br/>From date of lead time event to completion of performance<br/>30 Calendar Days<br/>Date of Award</p> <p>Ordering Period<br/>From<br/>13 Jul 2026<br/>To<br/>12 Jul 2031</p>  | 1 Data Records     | <p>Ship To<br/>DoDAAC: FA8213<br/>CountryCode: USA<br/>FA8213 AFLCMC EBHK<br/>CP 801 777 4162, 6072 FIR AVE BLDG 1233<br/>HILL AFB, UT 84056-5820<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email:<br/>AFLCMC.EBHJC.Distro@us.af.mil</p> | FoB Details<br>Contractor<br>Destination |
| 0002      | <p>Delivery Schedule<br/>From date of lead time event to completion of performance<br/>180 Calendar Days<br/>Date of Award</p> <p>Ordering Period<br/>From<br/>13 Jul 2026<br/>To<br/>12 Jul 2031</p> | 1 Data Records     | <p>Ship To<br/>DoDAAC: FA8213<br/>CountryCode: USA<br/>FA8213 AFLCMC EBHK<br/>CP 801 777 4162, 6072 FIR AVE BLDG 1233<br/>HILL AFB, UT 84056-5820<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email:<br/>AFLCMC.EBHJC.Distro@us.af.mil</p> | FoB Details<br>Contractor<br>Destination |
| 0003      | <p>Delivery Schedule<br/>From date of lead time event to completion of performance<br/>180 Calendar Days<br/>Date of Award</p> <p>Ordering Period<br/>From<br/>13 Jul 2026<br/>To<br/>12 Jul 2031</p> | 1 Lot              | <p>Ship To<br/>DoDAAC: FA8213<br/>CountryCode: USA<br/>FA8213 AFLCMC EBHK<br/>CP 801 777 4162, 6072 FIR AVE BLDG 1233<br/>HILL AFB, UT 84056-5820<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email:<br/>AFLCMC.EBHJC.Distro@us.af.mil</p> | FoB Details<br>Contractor<br>Destination |
| 000301    | <p>Ordering Period<br/>From<br/>13 Jul 2026<br/>To<br/>12 Jul 2031</p>                                                                                                                                |                    |                                                                                                                                                                                                                                           |                                          |
|           | <p>Ordering Period<br/>From</p>                                                                                                                                                                       |                    |                                                                                                                                                                                                                                           |                                          |

|        |                                                                                                                                                                                                                             |        |                                                                                                                                                                                                                                     |                                                     |
|--------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------|
| 000302 | 13 Jul 2026<br>To<br>12 Jul 2031                                                                                                                                                                                            |        |                                                                                                                                                                                                                                     |                                                     |
| 000303 | Ordering Period<br>From<br>13 Jul 2026<br>To<br>12 Jul 2031                                                                                                                                                                 |        |                                                                                                                                                                                                                                     |                                                     |
| 0004   | Delivery Schedule<br>From date of lead time event to completion of performance<br>20 Month<br>After Issuance of Delivery Order or First Article Approval<br><br>Ordering Period<br>From<br>13 Jul 2026<br>To<br>12 Jul 2031 | 1 Each | Place of Performance<br>DoDAAC: W53XMD<br>CountryCode: USA<br>W39Z CRANE ARMY AMMO ACTIVITY RECEIVING, BLDG 3608 300 HWY 361 CRANE, IN 47522-5099<br>UNITED STATES<br><br>Tyson Pesnell<br>Email:<br>AFLCMC.EBHC.CMFlares@us.af.mil | FoB Details<br>Government<br>Origin (after Loading) |
| 0005   | Delivery Schedule<br>From date of lead time event to completion of performance<br>20 Month<br>After Issuance of Delivery Order or First Article Approval<br><br>Ordering Period<br>From<br>13 Jul 2026<br>To<br>12 Jul 2031 | 1 Each | Place of Performance<br>DoDAAC: W53XMD<br>CountryCode: USA<br>W39Z CRANE ARMY AMMO ACTIVITY RECEIVING, BLDG 3608 300 HWY 361 CRANE, IN 47522-5099<br>UNITED STATES<br><br>Tyson Pesnell<br>Email:<br>AFLCMC.EBHC.CMFlares@us.af.mil | FoB Details<br>Government<br>Origin (after Loading) |
| 0006   | Delivery Schedule<br>From date of lead time event to completion of performance<br>20 Month<br>After Issuance of Delivery Order or First Article Approval<br><br>Ordering Period<br>From<br>13 Jul 2026<br>To<br>12 Jul 2031 | 1 Each | Place of Performance<br>DoDAAC: W53XMD<br>CountryCode: USA<br>W39Z CRANE ARMY AMMO ACTIVITY RECEIVING, BLDG 3608 300 HWY 361 CRANE, IN 47522-5099<br>UNITED STATES<br><br>Tyson Pesnell<br>Email:<br>AFLCMC.EBHC.CMFlares@us.af.mil | FoB Details<br>Government<br>Origin (after Loading) |
| 0007   | Ordering Period<br>From<br>13 Jul 2026<br>To<br>12 Jul 2031                                                                                                                                                                 | 20 Lot |                                                                                                                                                                                                                                     | FoB Details<br>Contractor<br>Destination            |
|        | Delivery Schedule                                                                                                                                                                                                           | 1 Lot  | Ship To                                                                                                                                                                                                                             | FoB Details                                         |

|                          |                                                                                                                                                                                                                                           |        |                                                                                                                                                                                                                                                      |                                                     |
|--------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------|
| Option Line Item<br>1003 | <p>From date of lead time event to completion of performance<br/>180 Calendar Days<br/>Date of Award</p> <p>Ordering Period<br/>From<br/>13 Jul 2031<br/>To<br/>12 Jul 2032</p>                                                           |        | <p>DoDAAC: FA8213<br/>CountryCode: USA<br/>FA8213 AFLCMC EBHK<br/>CP 801 777 4162, 6072 FIR AVE BLDG 1233<br/>HILL AFB, UT 84056-5820<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email:<br/>AFLCMC.EBHJC.Distro@us.af.mil</p>                        | Contractor<br>Destination                           |
| Option Line Item<br>1004 | <p>Delivery Schedule<br/>From date of lead time event to completion of performance<br/>20 Month<br/>After Issuance of Delivery Order or First Article Approval</p> <p>Ordering Period<br/>From<br/>13 Jul 2031<br/>To<br/>12 Jul 2032</p> | 1 Each | <p>Place of Performance<br/>DoDAAC: W53XMD<br/>CountryCode: USA<br/>W39Z CRANE ARMY AMMO ACTIVITY RECEIVING, BLDG 3608 300 HWY 361<br/>CRANE, IN 47522-5099<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email:<br/>AFLCMC.EBHC.CMFlares@us.af.mil</p> | FoB Details<br>Government<br>Origin (after Loading) |
| 1005                     | <p>Delivery Schedule<br/>From date of lead time event to completion of performance<br/>20 Month<br/>After Issuance of Delivery Order or First Article Approval</p> <p>Ordering Period<br/>From<br/>13 Jul 2031<br/>To<br/>12 Jul 2032</p> | 1 Each | <p>Place of Performance<br/>DoDAAC: W53XMD<br/>CountryCode: USA<br/>W39Z CRANE ARMY AMMO ACTIVITY RECEIVING, BLDG 3608 300 HWY 361<br/>CRANE, IN 47522-5099<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email:<br/>AFLCMC.EBHC.CMFlares@us.af.mil</p> | FoB Details<br>Government<br>Origin (after Loading) |
| 1006                     | <p>Delivery Schedule<br/>From date of lead time event to completion of performance<br/>20 Month<br/>After Issuance of Delivery Order or First Article Approval</p> <p>Ordering Period<br/>From<br/>13 Jul 2031<br/>To<br/>12 Jul 2032</p> | 1 Each | <p>Place of Performance<br/>DoDAAC: W53XMD<br/>CountryCode: USA<br/>W39Z CRANE ARMY AMMO ACTIVITY RECEIVING, BLDG 3608 300 HWY 361<br/>CRANE, IN 47522-5099<br/>UNITED STATES</p> <p>Tyson Pesnell<br/>Email:<br/>AFLCMC.EBHC.CMFlares@us.af.mil</p> | FoB Details<br>Government<br>Origin (after Loading) |
| Option Line Item<br>1007 | Ordering Period                                                                                                                                                                                                                           | 20 Lot |                                                                                                                                                                                                                                                      | FoB Details<br>Contractor<br>Destination            |

|  |                                          |  |  |  |
|--|------------------------------------------|--|--|--|
|  | From<br>13 Jul 2031<br>To<br>12 Jul 2032 |  |  |  |
|--|------------------------------------------|--|--|--|

**FAR Clauses Incorporated by Reference**

| Number    | Title                                                                                                 | Effective Date | Alternate/<br>Deviation | Variation<br>Effective<br>Date |
|-----------|-------------------------------------------------------------------------------------------------------|----------------|-------------------------|--------------------------------|
| 52.211-17 | Delivery of Excess Quantities.                                                                        | Sep 1989       |                         |                                |
| 52.242-15 | Stop-Work Order.                                                                                      | Aug 1989       |                         |                                |
| 52.242-17 | Government Delay of Work.                                                                             | Apr 1984       |                         |                                |
| 52.247-29 | F.o.b. Origin.                                                                                        | Feb 2006       |                         |                                |
| 52.247-30 | F.o.b. Origin, Contractor's Facility.                                                                 | Feb 2006       |                         |                                |
| 52.247-52 | Clearance and Documentation Requirements-Shipments to DoD Air or Water Terminal Transshipment Points. | Feb 2006       |                         |                                |
| 52.247-55 | F.o.b. Point for Delivery of Government-Furnished Property.                                           | Jun 2003       |                         |                                |
| 52.247-65 | F.o.b. Origin, Prepaid Freight-Small Package Shipments.                                               | Jan 1991       |                         |                                |

**DFARS Clauses Incorporated by Reference**

| Number       | Title                                                      | Effective Date | Alternate/<br>Deviation | Variation<br>Effective<br>Date |
|--------------|------------------------------------------------------------|----------------|-------------------------|--------------------------------|
| 252.223-7003 | Change in Place of Performance--Ammunition and Explosives. | Dec 1991       |                         |                                |



## Section G - Contract Administration Data

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                            | Effective Date | Alternate/<br>Deviation | Variation<br>Effective<br>Date |
|--------------|------------------------------------------------------------------|----------------|-------------------------|--------------------------------|
| 252.231-7000 | Supplemental Cost Principles                                     | Dec 1991       |                         |                                |
| 252.232-7002 | Progress Payments for Foreign Military Sales Acquisitions.       | May 2023       |                         |                                |
| 252.232-7003 | Electronic Submission of Payment Requests and Receiving Reports. | Dec 2018       |                         |                                |
| 252.232-7008 | Assignment of Claims (Overseas).                                 | Jun 1997       |                         |                                |
| 252.232-7018 | Progress Payments-Multiple Lots.                                 | May 2023       |                         |                                |

### DFARS Clauses Incorporated by Full Text

**252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)**

#### WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

\_\_\_\_\_

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the

applicable invoice and receiving report, as specified by the Contracting Officer.

\_\_\_\_\_

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) ) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table\*

| Field Name in WAWF        | Data to be entered in WAWF |
|---------------------------|----------------------------|
| Pay Official DoDAAC       | _____                      |
| Issue By DoDAAC           | _____                      |
| Admin DoDAAC              | _____                      |
| Inspect By DoDAAC         | _____                      |
| Ship To Code              | _____                      |
| Ship From Code            | _____                      |
| Mark For Code             | _____                      |
| Service Approver (DoDAAC) | _____                      |
| Service Acceptor (DoDAAC) | _____                      |
| Accept at Other DoDAAC    | _____                      |
| LPO DoDAAC                | _____                      |
| DCAA Auditor DoDAAC       | _____                      |
| Other DoDAAC(s)           | _____                      |

(\*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(\*\*Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

\_\_\_\_\_

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

## Section H - Special Contract Requirements

### FAR Clauses Incorporated by Full Text

52.234-4      **Earned Value Management System. (Deviation)**

**(Feb 2026)**

Earned Value Management System (Feb 2026) (Deviation)

(a) The Contractor must use an earned value management system (EVMS) that has been determined by the Cognizant Federal Agency (CFA) to be compliant with the guidelines in Electronic Industries Alliance Standard 748 (EIA-748) (current version at the time of award) to manage this contract. If the Contractor's current EVMS has not been determined compliant at the time of award, see paragraph (b) of this clause. The Contractor must submit EVMS reports as required by the contract.

(b) If the Contractor's EVM System is not compliant with the requirements in paragraph (a) of this clause, or the Contractor's existing cost/schedule control system is not compliant with the guidelines in EIA-748 (current version at time of award), the Contractor must-

(1) Apply the current system to the contract; and

(2) Take necessary actions to meet the milestones in the Contractor's approved EVMS plan.

(c) When an EVMS is required, the Government will conduct an Integrated Baseline Review (IBR). Agencies may require an additional IBR at-

(1) Exercise of significant options; or

(2) Incorporation of major modifications.

(d) Unless the CFA grants a waiver, Contractor-proposed EVMS changes require CFA approval prior to implementation.

(1) The CFA will notify the Contractor of its acceptance or rejection of the proposed EVMS changes within 30 days of receipt.

(2) If the CFA waives the advance approval requirements, the Contractor must disclose EVMS changes to the CFA at least 14 days prior to the effective date of implementation.

(e) The Contractor must provide the Government access to all pertinent records and data necessary to conduct surveillance and validate that the EVMS complies with the requirements in paragraph (a) of this clause for the duration of the contract.

(f) The Contractor must require the subcontractors specified below to comply with the requirements of this clause: [Insert list of applicable subcontractors.]

\_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

(End of clause)

## Section I - Contract Clauses

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                                                                                       | Effective Date | Alternate/<br>Deviation | Variation<br>Effective<br>Date |
|-----------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|-------------------------|--------------------------------|
| 52.202-1  | Definitions.                                                                                                                                                | Jun 2020       |                         |                                |
| 52.203-3  | Gratuities.                                                                                                                                                 | Apr 1984       |                         |                                |
| 52.203-5  | Covenant Against Contingent Fees.                                                                                                                           | May 2014       |                         |                                |
| 52.203-6  | Restrictions on Subcontractor Sales to the Government.                                                                                                      | Jun 2020       |                         |                                |
| 52.203-7  | Anti-Kickback Procedures.                                                                                                                                   | Jun 2020       |                         |                                |
| 52.203-8  | Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.                                                                           | May 2014       |                         |                                |
| 52.203-10 | Price or Fee Adjustment for Illegal or Improper Activity.                                                                                                   | May 2014       |                         |                                |
| 52.203-12 | Limitation on Payments to Influence Certain Federal Transactions.                                                                                           | Jun 2020       |                         |                                |
| 52.203-13 | Contractor Code of Business Ethics and Conduct.                                                                                                             | Nov 2021       |                         |                                |
| 52.203-19 | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.                                                                         | Jan 2017       |                         |                                |
| 52.204-10 | Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation)                                                                             | Feb 2026       |                         |                                |
| 52.204-13 | System for Award Management-Maintenance. (Deviation)                                                                                                        | Feb 2026       |                         |                                |
| 52.204-18 | Commercial and Government Entity Code Maintenance.                                                                                                          | Aug 2020       |                         |                                |
| 52.204-19 | Incorporation by Reference of Representations and Certifications.                                                                                           | Dec 2014       |                         |                                |
| 52.204-21 | Basic Safeguarding of Covered Contractor Information Systems.                                                                                               | Nov 2021       |                         |                                |
| 52.204-23 | Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities.                                    | Dec 2023       |                         |                                |
| 52.204-25 | Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.                                                     | Nov 2021       |                         |                                |
| 52.204-27 | Prohibition on a ByteDance Covered Application.                                                                                                             | Jun 2023       |                         |                                |
| 52.209-3  | First Article Approval-Contractor Testing. (Alternate I)                                                                                                    | Feb 2026       | Alternate I             | Jan 1997                       |
| 52.209-4  | First Article Approval-Government Testing. (Alternate I)                                                                                                    | Feb 2026       | Alternate I             | Jan 1997                       |
| 52.209-6  | Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation) | Feb 2026       |                         |                                |
| 52.209-9  | Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation)                                                                     | Feb 2026       |                         |                                |
| 52.209-10 | Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)                                                                                 | Feb 2026       |                         |                                |
| 52.210-1  | Market Research. (Deviation)                                                                                                                                | Feb 2026       |                         |                                |
| 52.211-5  | Material Requirements. (Deviation)                                                                                                                          | Feb 2026       |                         |                                |
| 52.215-2  | Audit and Records-Negotiation. (Deviation)                                                                                                                  | Feb 2026       |                         |                                |
| 52.215-8  | Order of Precedence-Uniform Contract Format. (Deviation)                                                                                                    | Feb 2026       |                         |                                |
| 52.215-10 | Price Reduction for Defective Certified Cost or Pricing Data.                                                                                               | Aug 2011       |                         |                                |
| 52.215-12 | Subcontractor Certified Cost or Pricing Data. (Deviation)                                                                                                   | Feb 2026       |                         |                                |
| 52.215-15 | Pension Adjustments and Asset Reversions. (Deviation)                                                                                                       | Feb 2026       |                         |                                |
| 52.215-18 | Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other Than Pensions. (Deviation)                                                         | Feb 2026       |                         |                                |
| 52.215-19 | Notification of Ownership Changes. (Deviation)                                                                                                              | Feb 2026       |                         |                                |
| 52.215-21 | Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data-Modifications. (Deviation)                               | Feb 2026       |                         |                                |
| 52.215-23 | Limitations on Pass-Through Charges. (Deviation)                                                                                                            | Feb 2026       |                         |                                |
| 52.219-8  | Utilization of Small Business Concerns. (Deviation)                                                                                                         | Feb 2026       |                         |                                |
| 52.219-9  | Small Business Subcontracting Plan. (Deviation)                                                                                                             | Feb 2026       |                         |                                |
| 52.219-9  | Small Business Subcontracting Plan. (Deviation) (Alternate II)                                                                                              | Feb 2026       | Alternate II            | Feb 2026                       |
| 52.219-16 | Liquidated Damages-Subcontracting Plan. (Deviation)                                                                                                         | Feb 2026       |                         |                                |
| 52.222-3  | Convict Labor. (Deviation)                                                                                                                                  | Feb 2026       |                         |                                |
| 52.222-4  | Contract Work Hours and Safety Standards-Overtime Compensation. (Deviation)                                                                                 | Feb 2026       |                         |                                |
| 52.222-19 | Child Labor-Cooperation with Authorities and Remedies. (Deviation)                                                                                          | Feb 2026       |                         |                                |
| 52.222-35 | Equal Opportunity for Veterans. (Deviation)                                                                                                                 | Feb 2026       |                         |                                |
| 52.222-37 | Employment Reports on Veterans. (Deviation)                                                                                                                 | Feb 2026       |                         |                                |
| 52.222-40 | Notification of Employee Rights Under the National Labor Relations Act. (Deviation)                                                                         | Feb 2026       |                         |                                |
| 52.222-50 | Combating Trafficking in Persons. (Deviation)                                                                                                               | Feb 2026       |                         |                                |
| 52.222-54 | Employment Eligibility Verification. (Deviation)                                                                                                            | Feb 2026       |                         |                                |
| 52.223-23 | Sustainable Products. (Deviation)                                                                                                                           | Feb 2026       |                         |                                |
| 52.225-13 | Restrictions on Certain Foreign Purchases.                                                                                                                  | Feb 2021       |                         |                                |
| 52.226-8  | Encouraging Contractor Policies to Ban Text Messaging While Driving.                                                                                        | May 2024       |                         |                                |
| 52.227-14 | Rights in Data-General.                                                                                                                                     | May 2014       |                         |                                |
| 52.227-17 | Rights in Data-Special Works.                                                                                                                               | Dec 2007       |                         |                                |
| 52.229-3  | Federal, State, and Local Taxes.                                                                                                                            | Feb 2013       |                         |                                |
| 52.229-6  | Taxes-Foreign Fixed-Price Contracts.                                                                                                                        | Feb 2013       |                         |                                |
| 52.230-4  | Disclosure and Consistency of Cost Accounting Practices-Foreign Concerns. (Deviation)                                                                       | Feb 2026       |                         |                                |
| 52.230-6  | Administration of Cost Accounting Standards. (Deviation)                                                                                                    | Feb 2026       |                         |                                |
| 52.232-1  | Payments.                                                                                                                                                   | Apr 1984       |                         |                                |
| 52.232-8  | Discounts for Prompt Payment.                                                                                                                               | Feb 2002       |                         |                                |
| 52.232-11 | Extras.                                                                                                                                                     | Apr 1984       |                         |                                |
| 52.232-16 | Progress Payments. (Alternate III)                                                                                                                          | Feb 2026       | Alternate III           | Jun 2020                       |
| 52.232-17 | Interest.                                                                                                                                                   | May 2014       |                         |                                |
| 52.232-25 | Prompt Payment.                                                                                                                                             | Jan 2017       |                         |                                |
| 52.232-33 | Payment by Electronic Funds Transfer-System for Award Management.                                                                                           | Oct 2018       |                         |                                |
| 52.232-39 | Unenforceability of Unauthorized Obligations.                                                                                                               | Jun 2013       |                         |                                |
| 52.232-40 | Providing Accelerated Payments to Small Business Subcontractors.                                                                                            | Mar 2023       |                         |                                |
| 52.233-1  | Disputes. (Deviation)                                                                                                                                       | Feb 2026       |                         |                                |
| 52.233-1  | Disputes. (Deviation) (Alternate I)                                                                                                                         | Feb 2026       | Alternate I             | Feb 2026                       |
| 52.233-3  | Protest after Award. (Deviation)                                                                                                                            | Feb 2026       |                         |                                |
| 52.233-4  | Applicable Law for Breach of Contract Claim. (Deviation)                                                                                                    | Feb 2026       |                         |                                |
| 52.240-91 | Security Prohibitions and Exclusions. (Deviation)                                                                                                           | Feb 2026       |                         |                                |
| 52.240-92 | Security Requirements. (Deviation)                                                                                                                          | Feb 2026       |                         |                                |
| 52.240-93 | Basic Safeguarding of Covered Contractor Information Systems. (Deviation)                                                                                   | Feb 2026       |                         |                                |

|           |                                                                           |          |
|-----------|---------------------------------------------------------------------------|----------|
| 52.242-5  | Payments to Small Business Subcontractors.                                | Jan 2017 |
| 52.242-13 | Bankruptcy.                                                               | Jul 1995 |
| 52.243-1  | Changes-Fixed Price. (Deviation)                                          | Feb 2026 |
| 52.244-5  | Competition in Subcontracting.                                            | Aug 2024 |
| 52.244-6  | Subcontracts for Commercial Products and Commercial Services. (Deviation) | Feb 2026 |
| 52.245-1  | Government Property.                                                      | Sep 2021 |
| 52.245-9  | Use and Charges.                                                          | Apr 2012 |
| 52.246-23 | Limitation of Liability.                                                  | Feb 1997 |
| 52.246-26 | Reporting Nonconforming Items.                                            | Aug 2024 |
| 52.247-68 | Report of Shipment (REPSHIP).                                             | Feb 2006 |
| 52.249-2  | Termination for Convenience of the Government (Fixed-Price).              | Apr 2012 |
| 52.249-8  | Default (Fixed-Price Supply and Service).                                 | Apr 1984 |
| 52.253-1  | Computer Generated Forms. (Deviation)                                     | Feb 2026 |

## DFARS Clauses Incorporated by Reference

| Number       | Title                                                                                                                       | Effective Date | Alternate/<br>Deviation | Variation<br>Effective<br>Date |
|--------------|-----------------------------------------------------------------------------------------------------------------------------|----------------|-------------------------|--------------------------------|
| 252.203-7000 | Requirements Relating to Compensation of Former DoD Officials.                                                              | Sep 2011       |                         |                                |
| 252.203-7001 | Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.                                       | Jan 2023       |                         |                                |
| 252.203-7002 | Requirement to Inform Employees of Whistleblower Rights.                                                                    | Dec 2022       |                         |                                |
| 252.203-7003 | Agency Office of the Inspector General.                                                                                     | Aug 2019       |                         |                                |
| 252.203-7004 | Display of Hotline Posters.                                                                                                 | Jan 2023       |                         |                                |
| 252.204-7000 | Disclosure of Information.                                                                                                  | Oct 2016       |                         |                                |
| 252.204-7002 | Payment for Contract Line or Subline Items Not Separately Priced.                                                           | Apr 2020       |                         |                                |
| 252.204-7003 | Control of Government Personnel Work Product.                                                                               | Apr 1992       |                         |                                |
| 252.204-7012 | Safeguarding Covered Defense Information and Cyber Incident Reporting.                                                      | May 2024       |                         |                                |
| 252.204-7012 | Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)                    | May 2024       | Deviation 2024-O0013    | May 2024                       |
| 252.204-7018 | Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.                                 | Jan 2023       |                         |                                |
| 252.204-7020 | NIST SP 800-171 DoD Assessment Requirements.                                                                                | Nov 2023       |                         |                                |
| 252.205-7000 | Provision of Information to Cooperative Agreement Holders.                                                                  | Oct 2024       |                         |                                |
| 252.209-7004 | Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism. | May 2019       |                         |                                |
| 252.211-7008 | Use of Government-Assigned Serial Numbers.                                                                                  | Sep 2010       |                         |                                |
| 252.215-7002 | Cost Estimating System Requirements.                                                                                        | Jan 2025       |                         |                                |
| 252.216-7003 | Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government.                                | Mar 2012       |                         |                                |
| 252.216-7010 | Postaward Debriefings for Task Orders and Delivery Orders.                                                                  | Oct 2025       |                         |                                |
| 252.219-7003 | Small Business Subcontracting Plan (DoD Contracts).                                                                         | Dec 2019       |                         |                                |
| 252.222-7006 | Restrictions on the Use of Mandatory Arbitration Agreements.                                                                | Jan 2023       |                         |                                |
| 252.223-7002 | Safety Precautions for Ammunition and Explosives.                                                                           | Nov 2023       |                         |                                |
| 252.223-7006 | Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.                                            | Sep 2014       |                         |                                |
| 252.223-7008 | Prohibition of Hexavalent Chromium.                                                                                         | Jan 2023       |                         |                                |
| 252.225-7004 | Report of Intended Performance Outside the United States and Canada -Submission after Award.                                | Jul 2024       |                         |                                |
| 252.225-7007 | Prohibition on Acquisition of Certain Items from Communist Chinese Military Companies.                                      | Dec 2018       |                         |                                |
| 252.225-7009 | Restriction on Acquisition of Certain Articles Containing Specialty Metals.                                                 | Jan 2023       |                         |                                |
| 252.225-7012 | Preference for Certain Domestic Commodities.                                                                                | Apr 2022       |                         |                                |
| 252.225-7013 | Duty-Free Entry.                                                                                                            | Aug 2025       |                         |                                |
| 252.225-7028 | Exclusionary Policies and Practices of Foreign Governments.                                                                 | Apr 2003       |                         |                                |
| 252.225-7041 | Correspondence in English.                                                                                                  | Jun 1997       |                         |                                |
| 252.225-7048 | Export-Controlled Items.                                                                                                    | Jun 2013       |                         |                                |
| 252.225-7056 | Prohibition Regarding Business Operations with the Maduro Regime.                                                           | Jan 2023       |                         |                                |
| 252.225-7058 | Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.                               | Jan 2023       |                         |                                |
| 252.225-7060 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.                                             | Jun 2023       |                         |                                |
| 252.226-7001 | Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.        | Jan 2023       |                         |                                |
| 252.226-7003 | Drug-Free Work Force.                                                                                                       | Aug 2024       |                         |                                |
| 252.232-7004 | DoD Progress Payment Rates (DEVIATION 2020-O0010)                                                                           | Oct 2014       | Deviation 2020-O0010    | Mar 2020                       |
| 252.232-7010 | Levies on Contract Payments.                                                                                                | Dec 2006       |                         |                                |
| 252.233-7001 | Choice of Law (Overseas).                                                                                                   | Jun 1997       |                         |                                |
| 252.242-7004 | Material Management and Accounting System.                                                                                  | Jan 2025       |                         |                                |
| 252.242-7005 | Contractor Business Systems.                                                                                                | Jan 2025       |                         |                                |
| 252.242-7006 | Accounting System Administration.                                                                                           | Jan 2025       |                         |                                |
| 252.243-7001 | Pricing of Contract Modifications.                                                                                          | Dec 1991       |                         |                                |
| 252.243-7002 | Requests for Equitable Adjustment.                                                                                          | Dec 2022       |                         |                                |
| 252.244-7000 | Subcontracts for Commercial Products or Commercial Services.                                                                | Nov 2023       |                         |                                |
| 252.245-7003 | Contractor Property Management System Administration                                                                        | Jan 2025       |                         |                                |
| 252.245-7005 | Management and Reporting of Government Property.                                                                            | Jan 2024       |                         |                                |
| 252.246-7003 | Notification of Potential Safety Issues.                                                                                    | Jan 2023       |                         |                                |
| 252.247-7023 | Transportation of Supplies by Sea.                                                                                          | Oct 2024       |                         |                                |
| 252.247-7028 | Application for U.S. Government Shipping Documentation/ Instructions.                                                       | Jun 2012       |                         |                                |

## FAR Clauses Incorporated by Full Text

|          |                       |            |
|----------|-----------------------|------------|
| 52.204-1 | Approval of Contract. | (Dec 1989) |
|----------|-----------------------|------------|

As prescribed in 4.103 , insert the following clause:

Approval of Contract (Dec 1989)

This contract is subject to the written approval of Contracting Officer[identify title of designated agency official here] and shall not be binding until so approved.

(End of clause)

**52.204-2 Security Requirements.**

**(Mar 2021)**

As prescribed in 4.404(a), insert the following clause:

Security Requirements (Mar 2021)

(a) This clause applies to the extent that this contract involves access to information classified "Confidential," "Secret," or "Top Secret."

(b) The Contractor shall comply with-

(1) The Security Agreement DD Form 441, including the National Industrial Security Program Operating Manual (32 CFR part 117); and

(2) Any revisions to that manual, notice of which has been furnished to the Contractor.

(c) If, subsequent to the date of this contract, the security classification or security requirements under this contract are changed by the Government and if the changes cause an increase or decrease in security costs or otherwise affect any other term or condition of this contract, the contract shall be subject to an equitable adjustment as if the changes were directed under the Changes clause of this contract.

(d) The Contractor agrees to insert terms that conform substantially to the language of this clause, including this paragraph (d) but excluding any reference to the Changes clause of this contract, in all subcontracts under this contract that involve access to classified information.

(End of clause)

**52.209-1 Qualification Requirements. (Deviation)**

**(Feb 2026)**

Qualification Requirements (Feb 2026) (Deviation)

(a) Definition. As used in this clause-

Qualification requirement means a Government requirement for testing or other quality assurance demonstration that must be completed before award.

(b) One or more qualification requirements apply to the supplies or services covered by this contract. For those supplies or services requiring qualification, whether the covered product or service is an end item under this contract or simply a component of an end item, the product, manufacturer, or source must have demonstrated that it meets the standards prescribed for qualification before award of this contract. The product, manufacturer, or source must be qualified at the time of award whether or not the name of the product, manufacturer, or source is actually included on a qualified products list, qualified manufacturers list, or qualified bidders list. Offerors should contact the agency activity designated below to obtain all requirements that they or their products or services, or their subcontractors or their products or services, must satisfy to become qualified and to arrange for an opportunity to demonstrate their abilities to meet the standards specified for qualification.

(Name) \_\_\_\_

(Address) \_\_\_\_

(c) If an offeror, manufacturer, source, product or service covered by a qualification requirement has already met the standards specified, the relevant information noted below should be provided.

Offeror's Name \_\_\_\_

Manufacturer's Name \_\_\_\_

Source's Name \_\_\_\_

Item Name \_\_\_\_\_

Service Identification \_\_\_\_\_

Test Number \_\_\_\_\_ (to the extent known)

(d) Even though a product or service subject to a qualification requirement is not itself an end item under this contract, the product, manufacturer, or source must nevertheless be qualified at the time of award of this contract. This is necessary whether the Contractor or a subcontractor will ultimately provide the product or service in question. If, after award, the Contracting Officer discovers that an applicable qualification requirement was not in fact met at the time of award, the Contracting Officer may either terminate this contract for default or allow performance to continue if adequate consideration is offered and the action is determined to be otherwise in the Government's best interests.

(e) If an offeror, manufacturer, source, product or service has met the qualification requirement but is not yet on a qualified products list, qualified manufacturers list, or qualified bidders list, the offeror must submit evidence of qualification prior to award of this contract. Unless determined to be in the Government's interest, award of this contract will not be delayed to permit an offeror to submit evidence of qualification.

(f) Any change in location or ownership of the plant where a previously qualified product or service was manufactured or performed requires reevaluation of the qualification. Similarly, any change in location or ownership of a previously qualified manufacturer or source requires reevaluation of the qualification. The reevaluation must be accomplished before the date of award.

(End of clause)

**52.209-3 First Article Approval-Contractor Testing. (Deviation)**

**(Feb 2026)**

First Article Approval-Contractor Testing (Feb 2026) (Deviation)

[Contracting Officer inserts details]

(a) The Contractor shall test \_\_\_\_\_ unit(s) of Lot/Item \_\_\_\_\_ as specified in this contract. At least \_\_\_\_\_ calendar days before the beginning of first article tests, the Contractor shall notify the Contracting Officer, in writing, of the time and location of the testing so that the Government may witness the tests.

(b) The Contractor shall submit the first article test report within \_\_\_\_\_ calendar days from the date of this contract to \_\_\_\_\_ [insert address of the Government activity to receive the report] marked "FIRST ARTICLE TEST REPORT: Contract No. \_\_\_\_\_, Lot/Item No. \_\_\_\_\_." Within \_\_\_\_\_ calendar days after the Government receives the test report, the Contracting Officer will notify the Contractor, in writing, of the conditional approval, approval, or disapproval of the first article. The notice of conditional approval or approval shall not relieve the Contractor from complying with all requirements of the specifications and all other terms and conditions of this contract. A notice of conditional approval will state any further action required of the Contractor. A notice of disapproval will cite reasons for the disapproval.

(c) If the first article is disapproved, the Contractor, upon Government request, shall repeat any or all first article tests. After each request for additional tests, the Contractor shall make any necessary changes, modifications, or repairs to the first article or select another first article for testing. All costs related to these tests are to be borne by the Contractor, including any and all costs for additional tests following a disapproval. The Contractor shall then conduct the tests and deliver another report to the Government under the terms and conditions and within the time specified by the Government. The Government will take action on this report within the time specified in paragraph (b) above. The Government reserves the right to require an equitable adjustment of the contract price for any extension of the delivery schedule, or for any additional costs to the Government related to these tests.

(d) If the Contractor fails to deliver any first article report on time, or the Contracting Officer disapproves any first article, the Contractor shall be deemed to have failed to make delivery within the meaning of the Default clause of this contract.

(e) Unless otherwise provided in the contract, and if the approved first article is not consumed or destroyed in testing, the Contractor may deliver the approved first article as part of the contract quantity if it meets all contract requirements for acceptance.

(f) If the Government does not act within the time specified in paragraph (b) or (c) above, the Contracting Officer will, upon timely written request from the Contractor, equitably adjust under the Changes clause of this contract the delivery or performance dates and/or the contract price, and any other contractual term affected by the delay.

(g) Before first article approval, the acquisition of materials or components for, or the commencement of production of, the balance of the contract quantity is at the sole risk of the Contractor. Before first article approval, the costs thereof shall not be allocable to this contract for (1) progress payments, or (2) termination settlements if the contract is terminated for the convenience of the Government.

(h) The Government may waive the requirement for first article approval test where supplies identical or similar to those called for in the schedule have been previously furnished by the offeror/contractor and have been accepted by the Government. The offeror/contractor may request a waiver.

(End of clause)

**52.209-4 First Article Approval-Government Testing. (Deviation)**

**(Feb 2026)**

First Article Approval-Government Testing (Feb 2026) (Deviation)

[Contracting Officer inserts details]

(a) The Contractor shall deliver \_\_\_\_ unit(s) of Lot/Item \_\_\_\_ within \_\_\_\_ calendar days from the date of this contract to the Government at \_\_\_\_ [insert name and address of the testing facility] for first article tests. The shipping documentation shall contain this contract number and the Lot/Item identification. This contract elsewhere specifies the characteristics that the first article must meet and the testing requirements.

(b) Within \_\_\_\_ calendar days after the Government receives the first article, the Contracting Officer will notify the Contractor, in writing, of the conditional approval, approval, or disapproval of the first article. The notice of conditional approval or approval shall not relieve the Contractor from complying with all requirements of the specifications and all other terms and conditions of this contract. A notice of conditional approval will state any further action required of the Contractor. A notice of disapproval will cite reasons for the disapproval.

(c) If the Government disapproves the first article, the Contractor, upon Government request, shall submit an additional first article for testing. After each request, the Contractor shall make any necessary changes, modifications, or repairs to the first article or select another first article for testing. All costs related to these tests are to be borne by the Contractor, including any and all costs for additional tests following a disapproval. The Contractor shall furnish any additional first article to the Government under the terms and conditions and within the time the Government specifies. The Government will act on this first article within the time limit specified in paragraph (b) above. The Government reserves the right to require an equitable adjustment of the contract price for any extension of the delivery schedule or for any additional costs to the Government related to these tests.

(d) If the Contractor fails to deliver any first article on time, or the Contracting Officer disapproves any first article, the Contractor will have failed to make delivery within the meaning of the Default clause of this contract.

(e) Unless otherwise provided in the contract, the Contractor-

(1) May deliver the approved first article as a part of the contract quantity, provided it meets all contract requirements for acceptance and was not consumed or destroyed in testing; and

(2) Shall remove and dispose of any first article from the Government test facility at the Contractor's expense.

(f) If the Government does not act within the time specified in paragraph (b) or (c) above, the Contracting Officer will, upon timely written request from the Contractor, equitably adjust under the Changes clause of this contract the delivery or performance dates, the contract price, or both, and any other contractual term affected by the delay.

(g) The Contractor is responsible for providing operating and maintenance instructions, spare parts support, and repair of the first article during any first article test.

(h) Before first article approval, the acquisition of materials or components for, or the commencement of production of, the balance of the contract quantity is at the sole risk of the Contractor. Before first article approval, the costs thereof shall not be allocable to this contract for (1) progress payments, or (2) termination settlements if the contract is terminated for the convenience of the Government.

(i) The Government may waive the requirement for first article approval test where supplies identical or similar to those called for in the schedule have been previously furnished by the Offeror/Contractor and have been accepted by the Government. The Offeror/Contractor may request a waiver.

(End of clause)

**52.215-21 Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data- Modifications. (Alternate III)**

**(Feb 2026)**

**Alternate III (Oct 1997)**

Alternate III (Oct 1997). As prescribed in 15.408 (m), add the following paragraph (c) to the basic clause (if Alternate II is also used, redesignate the following paragraph as paragraph (d)):

(c) Submit the cost portion of the proposal via the following electronic media: \_\_\_\_ [Insert media format]



**52.216-18      Ordering.**

**(Aug 2020)**

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from \_\_\_\_ through \_\_\_\_ [insert dates].

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

**52.216-19      Order Limitations.**

**(Oct 1995)**

Order Limitations (Oct 1995)

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than \_\_\_\_ [insert dollar figure or quantity], the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor-

(1) Any order for a single item in excess of \_\_\_\_ [insert dollar figure or quantity];

(2) Any order for a combination of items in excess of \_\_\_\_ [insert dollar figure or quantity]; or

(3) A series of orders from the same ordering office within \_\_\_\_ days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within \_\_\_\_ days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

**52.216-22      Indefinite Quantity. (Deviation)**

**(Feb 2026)**

Indefinite Quantity (Feb 2026) (Deviation)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after \_\_\_\_ [insert date].

(End of clause)

**52.216-32 Task-Order and Delivery-Order Ombudsman.**

**(Sep 2019)**

Task-Order and Delivery-Order Ombudsman (Sept 2019)

(a) In accordance with 41 U.S.C. 4106(g), the Agency has designated the following task-order and delivery-order Ombudsman for this contract. The Ombudsman must review complaints from the Contractor concerning all task-order and delivery-order actions for this contract and ensure the Contractor is afforded a fair opportunity for consideration in the award of orders, consistent with the procedures in the contract. \_\_\_\_ [Contracting Officer to insert name, address, telephone number, and email address for the Agency Ombudsman or provide the URL address where this information may be found.]

(b) Consulting an ombudsman does not alter or postpone the timeline for any other process (e.g., protests).

(c) Before consulting with the Ombudsman, the Contractor is encouraged to first address complaints with the Contracting Officer for resolution. When requested by the Contractor, the Ombudsman may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

(End of clause)

**52.217-9 Option to Extend the Term of the Contract.**

**(Mar 2000)**

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within \_\_\_\_ [insert the period of time within which the Contracting Officer may exercise the option]; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least \_\_\_\_ days [60 days unless a different number of days is inserted] before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed \_\_\_\_ (months) (years).

(End of clause)

**52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns.**

**(Oct 2022)**

As prescribed in 19.1309(b), insert the following clause:

Notice of Price Evaluation preference for HUBZone Small Business Concerns (Oct 2022)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(2) The factor of 10 percent shall be applied on a line item basis or to any group of items on which award may be made. Other evaluation factors described in the solicitation shall be applied before application of the factor.

(3) When the two highest rated offerors are a HUBZone small business concern and a large business, and the evaluated offer of the HUBZone small business concern is equal to the evaluated offer of the large business after considering the price evaluation preference, award will be made to the HUBZone small business concern.

(b) Waiver of evaluation preference. A HUBZone small business concern may elect to waive the evaluation preference, in which case the factor will be added to its offer for evaluation purposes.

[ ] Offeror elects to waive the evaluation preference.

(c) Joint venture. A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of clause)

**52.219-28 Postaward Small Business Program Rerepresentation. (Deviation)**

**(Feb 2026)**

Postaward Small Business Program Rerepresentation (Feb 2026) (Deviation)

(a) Definitions. As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it [ ] is, [ ] is not a small business concern under \_\_\_\_ NAICS Code assigned to \_\_\_\_ contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.] The Contractor represents that it [ ] is, [ ] is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [\_\_\_\_ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_]

(4) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [\_\_\_\_ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_]

(5) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it [ ] is, [ ] is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [\_\_\_\_ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_]

(6) HUBZone joint venture eligible under the HUBZone Program.[ Complete only if the offeror is a HUBZone small business concern. ] The offeror represents, as part of its offer, that It [ ] is, [ ] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [\_\_\_\_ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [\_\_\_\_ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

**52.219-28 Postaward Small Business Program Rerepresentation. (Deviation) (Alternate I)**

**(Feb 2026) Alternate I (Feb 2026)**

Alternate I (Feb 2026) (Deviation). As prescribed in 19.101(a)(2)(iii)(B), substitute the following paragraph (g)(1) for paragraph (g)(1) of the basic clause:

(g)(1) The Contractor represents its small business size status for each one of the NAICS codes assigned to this contract.

| NAICS Code | Small business concern (yes/no) |
|------------|---------------------------------|
|------------|---------------------------------|

|       |       |
|-------|-------|
| _____ | _____ |
| _____ | _____ |

[Contracting Officer to insert NAICS codes.]

**52.232-16 Progress Payments. (Deviation)**

**(Feb 2026)**

Progress Payments (Feb 2026) (Deviation)

The Government will make progress payments to the Contractor when requested as work progresses, but not more frequently than monthly, in amounts of \$2,500 or more approved by the Contracting Officer, under the following conditions:

(a) Computation of amounts.

(1) Unless the Contractor requests a smaller amount, the Government will compute each progress payment as 80 percent of the Contractor's total costs incurred under this contract whether or not actually paid, plus financing payments to subcontractors (see paragraph (j) of this clause), less the sum of all previous progress payments made by the Government under this contract. The Contracting Officer will consider cost of money that would be allowable under Federal Acquisition Regulation (FAR) 31.205-10 as an incurred cost for progress payment purposes.

(2) The amount of financing and other payments for supplies and services purchased directly for the contract are limited to the amounts that have been paid by cash, check, or other forms of payment, or that are determined due and will be paid to subcontractors-

(i) In accordance with the terms and conditions of a subcontract or invoice; and

(ii) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government.

(3) The Government will exclude accrued costs of Contractor contributions under employee pension plans until actually paid unless-

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's total costs for progress payments until paid).

(4) The Contractor shall not include the following in total costs for progress payment purposes in paragraph (a)(1) of this clause:

(i) Costs that are not reasonable, allocable to this contract, and consistent with sound and generally accepted accounting principles and practices.

(ii) Costs incurred by subcontractors or suppliers.

(iii) Costs ordinarily capitalized and subject to depreciation or amortization except for the properly depreciated or amortized portion of such costs.

(iv) Payments made or amounts payable to subcontractors or suppliers, except for-

(A) Completed work, including partial deliveries, to which the Contractor has acquired title; and

(B) Work under cost-reimbursement or time-and-material subcontracts to which the Contractor has acquired title.

(5) The amount of unliquidated progress payments may exceed neither (i) the progress payments made against incomplete work (including allowable unliquidated progress payments to subcontractors) nor (ii) the value, for progress payment purposes, of the incomplete work. Incomplete work shall be considered to be the supplies and services required by this contract, for which delivery and invoicing by the Contractor and acceptance by the Government are incomplete.

(6) The total amount of progress payments shall not exceed 80 percent of the total contract price.

(7) If a progress payment or the unliquidated progress payments exceed the amounts permitted by subparagraphs (a)(4) or (a)(5) of this clause, the Contractor shall repay the amount of such excess to the Government on demand.

(8) Notwithstanding any other terms of the contract, the Contractor agrees not to request progress payments in dollar amounts of less than \$2,500. The Contracting Officer may make exceptions.

(9) The costs applicable to items delivered, invoiced, and accepted shall not include costs in excess of the contract price of the items.

(b) Liquidation. Except as provided in the Termination for Convenience of the Government clause, all progress payments shall be liquidated by deducting from any payment under this contract, other than advance or progress payments, the unliquidated progress payments, or 80 percent of the amount invoiced, whichever is less. The Contractor shall repay to the Government any amounts required by a retroactive price reduction, after computing liquidations and payments on past invoices at the reduced prices and adjusting the unliquidated progress payments accordingly. The Government reserves the right to unilaterally change from the ordinary liquidation rate to an alternate rate when deemed appropriate for proper contract financing.

(c) Reduction or suspension. The Contracting Officer may reduce or suspend progress payments, increase the rate of liquidation, or take a combination of these actions, after finding on substantial evidence any of the following conditions:

(1) The Contractor failed to comply with any material requirement of this contract (which includes paragraphs (f) and (g) of this clause).

(2) Performance of this contract is endangered by the Contractor's (i) failure to make progress or (ii) unsatisfactory financial condition.

(3) Inventory allocated to this contract substantially exceeds reasonable requirements.

(4) The Contractor is delinquent in payment of the costs of performing this contract in the ordinary course of business.

(5) The fair value of the undelivered work is less than the amount of unliquidated progress payments for that work.

(6) The Contractor is realizing less profit than that reflected in the establishment of any alternate liquidation rate in paragraph (b) of this clause, and that rate is less than the progress payment rate stated in subparagraph (a)(1) of this clause.

(d) Title.

(1) Title to the property described in this paragraph (d) shall vest in the Government. Vestiture shall be immediately upon the date of this contract, for property acquired or produced before that date. Otherwise, vestiture shall occur when the property is or should have been allocable or properly chargeable to this contract.

(2) Property, as used in this clause, includes all of the below-described items acquired or produced by the Contractor that are or should be allocable or properly chargeable to this contract under sound and generally accepted accounting principles and practices.

(i) Parts, materials, inventories, and work in process;

(ii) Special tooling and special test equipment to which the Government is to acquire title;

(iii) Nondurable (i.e., noncapital) tools, jigs, dies, fixtures, molds, patterns, taps, gauges, test equipment, and other similar manufacturing aids, title to which would not be obtained as special tooling under paragraph (d)(2)(ii) of this clause; and

(iv) Drawings and technical data, to the extent the Contractor or subcontractors are required to deliver them to the Government by other clauses of this contract.

(3) Although title to property is in the Government under this clause, other applicable clauses of this contract, e.g., the termination clauses, shall determine the handling and disposition of the property.

(4) The Contractor may sell any scrap resulting from production under this contract without requesting the Contracting Officer's approval, but the proceeds shall be credited against the costs of performance.

(5) To acquire for its own use or dispose of property to which title is vested in the Government under this clause, the Contractor must obtain the Contracting Officer's advance approval of the action and the terms. The Contractor shall (i) exclude the allocable costs of the property from the costs of contract performance, and (ii) repay to the Government any amount of unliquidated progress payments allocable to the property. Repayment may be by cash or credit memorandum.

(6) When the Contractor completes all of the obligations under this contract, including liquidation of all progress payments, title shall vest in the Contractor for all property (or the proceeds thereof) not-

(i) Delivered to, and accepted by, the Government under this contract; or

(ii) Incorporated in supplies delivered to, and accepted by, the Government under this contract and to which title is vested in the Government under this clause.

(7) The terms of this contract concerning liability for Government-furnished property shall not apply to property to which the Government acquired title solely under this clause.

(e) Risk of loss. Before delivery to and acceptance by the Government, the Contractor shall bear the risk of loss for property, the title to which vests in the Government under this clause, except to the extent the Government expressly assumes the risk. The Contractor shall repay the Government an amount equal to the unliquidated

progress payments that are based on costs allocable to property that is lost (see 45.101).

(f) Control of costs and property. The Contractor shall maintain an accounting system and controls adequate for the proper administration of this clause.

(g) Reports, forms, and access to records.

(1) The Contractor shall promptly furnish reports, certificates, financial statements, and other pertinent information (including estimates to complete) reasonably requested by the Contracting Officer for the administration of this clause. Also, the Contractor shall give the Government reasonable opportunity to examine and verify the Contractor's books, records, and accounts.

(2) The Contractor shall furnish estimates to complete that have been developed or updated within six months of the date of the progress payment request. The estimates to complete shall represent the Contractor's best estimate of total costs to complete all remaining contract work required under the contract. The estimates shall include sufficient detail to permit Government verification.

(3) Each Contractor request for progress payment shall:

(i) Be submitted on Standard Form 1443, Contractor's Request for Progress Payment, or the electronic equivalent as required by agency regulations, in accordance with the form instructions and the contract terms; and

(ii) Include any additional supporting documentation requested by the Contracting Officer.

(h) Special terms regarding default. If this contract is terminated under the Default clause, (i) the Contractor shall, on demand, repay to the Government the amount of unliquidated progress payments and (ii) title shall vest in the Contractor, on full liquidation of progress payments, for all property for which the Government elects not to require delivery under the Default clause. The Government shall be liable for no payment except as provided by the Default clause.

(i) Reservations of rights.

(1) No payment or vesting of title under this clause shall (i) excuse the Contractor from performance of obligations under this contract or (ii) constitute a waiver of any of the rights or remedies of the parties under the contract.

(2) The Government's rights and remedies under this clause (i) shall not be exclusive but rather shall be in addition to any other rights and remedies provided by law or this contract and (ii) shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(j) Financing payments to subcontractors. The financing payments to subcontractors mentioned in paragraphs (a)(1) and (a)(2) of this clause shall be all financing payments to subcontractors or divisions, if the following conditions are met:

(1) The amounts included are limited to-

(i) The unliquidated remainder of financing payments made; plus

(ii) Any unpaid subcontractor requests for financing payments.

(2) The subcontract or interdivisional order is expected to involve a minimum of approximately 6 months between the beginning of work and the first delivery; or, if the subcontractor is a small business concern, 4 months.

(3) If the financing payments are in the form of progress payments, the terms of the subcontract or interdivisional order concerning progress payments-

(i) Are substantially similar to the terms of this clause for any subcontractor that is a large business concern, or this clause with its Alternate I for any subcontractor that is a small business concern;

(ii) Are at least as favorable to the Government as the terms of this clause;

(iii) Are not more favorable to the subcontractor or division than the terms of this clause are to the Contractor;

(iv) Are in conformance with the requirements of FAR 32.504(e); and

(v) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(4) If the financing payments are in the form of performance-based payments, the terms of the subcontract or interdivisional order concerning payments-

(i) Are substantially similar to the Performance-Based Payments clause at FAR 52.232-32 and meet the criteria for, and definition of, performance-based payments in FAR Part 32;

(ii) Are in conformance with the requirements of FAR 32.504(f); and

(iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(5) If the financing payments are in the form of commercial product or commercial service financing payments, the terms of the subcontract or interdivisional order concerning payments-

(i) Are constructed in accordance with FAR 32.206(c) and included in a subcontract for a commercial product or commercial service purchase that meets the definition and standards for acquisition of commercial products and commercial services in FAR parts 2 and 12;

(ii) Are in conformance with the requirements of FAR 32.504(g); and

(iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(6) If financing is in the form of progress payments, the progress payment rate in the subcontract is the customary rate used by the contracting agency, depending on whether the subcontractor is or is not a small business concern.

(7) Concerning any proceeds received by the Government for property to which title has vested in the Government under the subcontract terms, the parties agree that the proceeds shall be applied to reducing any unliquidated financing payments by the Government to the Contractor under this contract.

(8) If no unliquidated financing payments to the Contractor remain, but there are unliquidated financing payments that the Contractor has made to any subcontractor, the Contractor shall be subrogated to all the rights the Government obtained through the terms required by this clause to be in any subcontract, as if all such rights had been assigned and transferred to the Contractor.

(9) To facilitate small business participation in subcontracting under this contract, the Contractor shall provide financing payments to small business concerns, in conformity with the standards for customary contract financing payments stated in FAR 32.113. The Contractor shall not consider the need for such financing payments as a handicap or adverse factor in the award of subcontracts.

(k) Limitations on undefinitized contract actions. Notwithstanding any other progress payment provisions in this contract, progress payments may not exceed 80 percent of costs incurred on work accomplished under undefinitized contract actions. A contract action is any action resulting in a contract, as defined in subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes. This limitation shall apply to the costs incurred, as computed in accordance with paragraph (a) of this clause, and shall remain in effect until the contract action is definitized. Costs incurred which are subject to this limitation shall be segregated on Contractor progress payment requests and invoices from those costs eligible for higher progress payment rates. For purposes of progress payment liquidation, as described in paragraph (b) of this clause, progress payments for undefinitized contract actions shall be liquidated at 80 percent of the amount invoiced for work performed under the undefinitized contract action as long as the contract action remains undefinitized. The amount of unliquidated progress payments for undefinitized contract actions shall not exceed 80 percent of the maximum liability of the Government under the undefinitized contract action or such lower limit specified elsewhere in the contract. Separate limits may be specified for separate actions.

(l) Due date. The designated payment office will make progress payments on the \_\_\_\_ [Contracting Officer insert date as prescribed by agency head; if not prescribed, insert "30th"] day after the designated billing office receives a proper progress payment request. In the event that the Government requires an audit or other review of a specific progress payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date. Progress payments are considered contract financing and are not subject to the interest penalty provisions of the Prompt Payment Act.



(m) Progress payments under indefinite-delivery contracts. The Contractor shall account for and submit progress payment requests under individual orders as if the order constituted a separate contract, unless otherwise specified in this contract.

(End of clause)

**52.232-34 Payment by Electronic Funds Transfer-Other than System for Award Management.**

**(Jul 2013)**

As prescribed in 32.1110(a)(2), insert the following clause:

Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013)

**(a) Method of payment.**

(1) All payments by the Government under this contract shall be made by electronic funds transfer (EFT) except as provided in paragraph (a)(2) of this clause. As used in this clause, the term "EFT" refers to the funds transfer and may also include the payment information transfer.

(2) In the event the Government is unable to release one or more payments by EFT, the Contractor agrees to either-

(i) Accept payment by check or some other mutually agreeable method of payment; or

(ii) Request the Government to extend payment due dates until such time as the Government makes payment by EFT (but see paragraph (d) of this clause).

**(b) Mandatory submission of Contractor's EFT information.**

(1) The Contractor is required to provide the Government with the information required to make payment by EFT (see paragraph (j) of this clause). The Contractor shall provide this information directly to the office designated in this contract to receive that information (hereafter: "designated office") by no later than 15 days prior to submission of the first request for payment\_\_\_\_\_[the Contracting Officer shall insert date, days after award, days before first request, the date specified for receipt of offers if the provision at 52.232-38 is utilized, or "concurrent with first request" as prescribed by the head of the agency; if not prescribed, insert "no later than 15 days prior to submission of the first request for payment"]. If not otherwise specified in this contract, the payment office is the designated office for receipt of the Contractor's EFT information. If more than one designated office is named for the contract, the Contractor shall provide a separate notice to each office. In the event that the EFT information changes, the Contractor shall be responsible for providing the updated information to the designated office(s).

(2) If the Contractor provides EFT information applicable to multiple contracts, the Contractor shall specifically state the applicability of this EFT information in terms acceptable to the designated office. However, EFT information supplied to a designated office shall be applicable only to contracts that identify that designated office as the office to receive EFT information for that contract.

(c) Mechanisms for EFT payment. The Government may make payment by EFT through either the Automated Clearing House (ACH) network, subject to the rules of the National Automated Clearing House Association, or the Fedwire Transfer System. The rules governing Federal payments through the ACH are contained in 31 CFR Part 210.

**(d) Suspension of payment.**

(1) The Government is not required to make any payment under this contract until after receipt, by the designated office, of the correct EFT payment information from the Contractor. Until receipt of the correct EFT information, any invoice or contract financing request shall be deemed not to be a proper invoice for the purpose of prompt payment under this contract. The prompt payment terms of the contract regarding notice of an improper invoice and delays in accrual of interest penalties apply.

(2) If the EFT information changes after submission of correct EFT information, the Government shall begin using the changed EFT information no later than 30 days after its receipt by the designated office to the extent payment is made by EFT. However, the Contractor may request that no further payments be made until the updated EFT information is implemented by the payment office. If such suspension would result in a late payment under the prompt payment terms of this contract, the Contractor's request for suspension shall extend the due date for payment by the number of days of the suspension.

(e) Liability for uncompleted or erroneous transfers.

(1) If an uncompleted or erroneous transfer occurs because the Government used the Contractor's EFT information incorrectly, the Government remains responsible for-

(i) Making a correct payment;

(ii) Paying any prompt payment penalty due; and

(iii) Recovering any erroneously directed funds.

(2) If an uncompleted or erroneous transfer occurs because the Contractor's EFT information was incorrect, or was revised within 30 days of Government release of the EFT payment transaction instruction to the Federal Reserve System, and-

(i) If the funds are no longer under the control of the payment office, the Government is deemed to have made payment and the Contractor is responsible for recovery of any erroneously directed funds; or

(ii) If the funds remain under the control of the payment office, the Government shall not make payment and the provisions of paragraph (d) shall apply.

(f) EFT and prompt payment. A payment shall be deemed to have been made in a timely manner in accordance with the prompt payment terms of this contract if, in the EFT payment transaction instruction released to the Federal Reserve System, the date specified for settlement of the payment is on or before the prompt payment due date, provided the specified payment date is a valid date under the rules of the Federal Reserve System.

(g) EFT and assignment of claims. If the Contractor assigns the proceeds of this contract as provided for in the assignment of claims terms of this contract, the Contractor shall require as a condition of any such assignment, that the assignee shall provide the EFT information required by paragraph (j) of this clause to the designated office, and shall be paid by EFT in accordance with the terms of this clause. In all respects, the requirements of this clause shall apply to the assignee as if it were the Contractor. EFT information that shows the ultimate recipient of the transfer to be other than the Contractor, in the absence of a proper assignment of claims acceptable to the Government, is incorrect EFT information within the meaning of paragraph (d) of this clause.

(h) Liability for change of EFT information by financial agent. The Government is not liable for errors resulting from changes to EFT information provided by the Contractor's financial agent.

(i) Payment information. The payment or disbursing office shall forward to the Contractor available payment information that is suitable for transmission as of the date of release of the EFT instruction to the Federal Reserve System. The Government may request the Contractor to designate a desired format and method(s) for delivery of payment information from a list of formats and methods the payment office is capable of executing. However, the Government does not guarantee that any particular format or method of delivery is available at any particular payment office and retains the latitude to use the format and delivery method most convenient to the Government. If the Government makes payment by check in accordance with paragraph (a) of this clause, the Government shall mail the payment information to the remittance address in the contract.

(j) EFT information. The Contractor shall provide the following information to the designated office. The Contractor may supply this data for this or multiple contracts (see paragraph (b) of this clause). The Contractor shall designate a single financial agent per contract capable of receiving and processing the EFT information using the EFT methods described in paragraph (c) of this clause.

(1) The contract number (or other procurement identification number).

(2) The Contractor's name and remittance address, as stated in the contract(s).

(3) The signature (manual or electronic, as appropriate), title, and telephone number of the Contractor official authorized to provide this information.

(4) The name, address, and 9-digit Routing Transit Number of the Contractor's financial agent.

(5) The Contractor's account number and the type of account (checking, saving, or lockbox).

(6) If applicable, the Fedwire Transfer System telegraphic abbreviation of the Contractor's financial agent.

(7) If applicable, the Contractor shall also provide the name, address, telegraphic abbreviation, and 9-digit Routing Transit Number of the correspondent financial institution receiving the wire transfer payment if the Contractor's financial agent is not directly on-line to the Fedwire Transfer System; and, therefore, not the receiver of the wire transfer payment.

(End of clause)

**52.244-2 Subcontracts.**

(Jun 2020)

Subcontracts (Jun 2020)

(a) Definitions. As used in this clause-

"Approved purchasing system" means a Contractor's purchasing system that has been reviewed and approved in accordance with part 44 of the Federal Acquisition Regulation (FAR).

"Consent to subcontract" means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

Subcontract means any contract, as defined in FAR subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) of this clause.

(c) If the Contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that-

(1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or

(2) Is fixed-price and exceeds-

(i) For a contract awarded by the Department of Defense, the Coast Guard, or the National Aeronautics and Space Administration, the greater of the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or

(ii) For a contract awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts:

\_\_\_\_\_

(e)

(1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:

(i) A description of the supplies or services to be subcontracted.

(ii) Identification of the type of subcontract to be used.

(iii) Identification of the proposed subcontractor.

(iv) The proposed subcontract price.

(v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.

(vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.

(vii) A negotiation memorandum reflecting-

(A) The principal elements of the subcontract price negotiations;

(B) The most significant considerations controlling establishment of initial or revised prices;

(C) The reason certified cost or pricing data were or were not required;

(D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;

(E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

(G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (b), (c), or (d) of this clause.

(f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination-

(1) Of the acceptability of any subcontract terms or conditions;

(2) Of the allowability of any cost under this contract; or

(3) To relieve the Contractor of any responsibility for performing this contract.

(g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).

(h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.

(i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR subpart 44.3.

(j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations:

\_\_\_\_\_

(End of clause)

**52.247-1 Commercial Bill of Lading Notations.**

**(Feb 2006)**

Commercial Bill of Lading Notations (Feb 2006)

When the Contracting Officer authorizes supplies to be shipped on a commercial bill of lading and the Contractor will be reimbursed these transportation costs as direct allowable costs, the Contractor shall ensure before shipment is made that the commercial shipping documents are annotated with either of the following notations, as appropriate:

(a) If the Government is shown as the consignor or the consignee, the annotation shall be:

Transportation is for the \_\_\_\_ [name the specific agency] and the actual total transportation charges paid to the carrier(s) by the consignor or consignee are assignable to, and shall be reimbursed by, the Government.

(b) If the Government is not shown as the consignor or the consignee, the annotation shall be:

Transportation is for the \_\_\_\_ [name the specific agency] and the actual total transportation charges paid to the carrier(s) by the consignor or consignee shall be reimbursed by the Government, pursuant to cost-reimbursement contract No. \_\_\_\_\_. This may be confirmed by contacting \_\_\_\_\_ [Name and address of the contract administration office listed in the contract].

(End of clause)

**52.252-2        Clauses Incorporated by Reference.**

**(Feb 1998)**

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

\_\_\_\_ \_[Insert one or more Internet addresses]

(End of clause)

**52.252-4        Alterations in Contract.**

**(Apr 1984)**

Alterations in Contract (Apr 1984)

Portions of this contract are altered as follows:

\_\_\_\_ \_

(End of clause)

**52.252-6        Authorized Deviations in Clauses.**

**(Nov 2020)**

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any \_\_\_\_\_[insert regulation name] (48 CFR \_\_\_\_\_) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

## **DFARS Clauses Incorporated by Full Text**

**252.204-7021    Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements.**

**(Nov 2025)**

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) Definitions. As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) Framework. The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) Duplication. The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) Requirements. The Contractor shall-

- (1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: \_\_\_\_ Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC) for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and
- (ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;
- (2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;
- (3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;
- (4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and
- (5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) Reporting. The Contractor shall-

- (1) Submit to the Contracting Officer-
- (i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and
- (ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;
- (2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and
- (3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) Subcontracts. The Contractor shall-

- (1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and
- (2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

**252.209-7010 Critical Safety Items.**

**(Aug 2011)**

As prescribed in 209.270-5, use the following clause:

**CRITICAL SAFETY ITEMS (AUG 2011)**

(a) Definitions.

"Aviation critical safety item" means a part, an assembly, installation equipment, launch equipment, recovery equipment, or support equipment for an aircraft or aviation weapon system if the part, assembly, or equipment contains a characteristic any failure, malfunction, or absence of which could cause-

- (i) A catastrophic or critical failure resulting in the loss of, or serious damage to, the aircraft or weapon system;
- (ii) An unacceptable risk of personal injury or loss of life; or
- (iii) An uncommanded engine shutdown that jeopardizes safety.

"Design control activity" means-

- (i) With respect to an aviation critical safety item, the systems command of a military department that is specifically responsible for ensuring the airworthiness of an aviation system or equipment, in which an aviation critical safety item is to be used; and
- (ii) With respect to a ship critical safety item, the systems command of a military department that is specifically responsible for ensuring the seaworthiness of a ship or ship equipment, in which a ship critical safety item is to be used.

"Ship critical safety item" means any ship part, assembly, or support equipment containing a characteristic, the failure, malfunction, or absence of which could cause-

- (i) A catastrophic or critical failure resulting in loss of, or serious damage to, the ship; or
- (ii) An unacceptable risk of personal injury or loss of life.

(b) Identification of critical safety items. One or more of the items being procured under this contract is an aviation or ship critical safety item. The following items have been designated aviation critical safety items or ship critical safety items by the designated design control activity:

0003

\_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

(Insert additional lines as necessary)

(c) Heightened quality assurance surveillance. Items designated in paragraph (b) of this clause are subject to heightened, risk-based surveillance by the designated quality assurance representative.

(End of clause)

## **252.211-7003 Item Unique Identification and Valuation.**

**(Jan 2023)**

### **ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)**

(a) Definitions. As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

- (1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or
- (2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and



uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

" Enterprise " means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

" Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

- (1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;
- (2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and
- (3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at [http://www.aimglobal.org/?Reg\\_Authority15459](http://www.aimglobal.org/?Reg_Authority15459).

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

" Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or

a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) Unique item identifier.

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number Item Description

\_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number Item Description

\_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

(If items are identified in the Schedule, insert "See Schedule in this table.")

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparables and DoD serially managed nonreparables as specified in Attachment Number \_\_\_\_\_.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number \_\_\_\_\_.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) Data syntax and semantics of unique item identifiers. The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) Unique item identifier.

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

(1) Unique item identifier.

(2) Unique item identifier type.

(3) Issuing agency code (if concatenated unique item identifier is used).

(4) Enterprise identifier (if concatenated unique item identifier is used).

(5) Original part number (if there is serialization within the original part number).

(6) Lot or batch number (if there is serialization within the lot or batch number).

(7) Current part number (optional and only if not the same as the original part number).

(8) Current part number effective date (optional and only if current part number is used).

(9) Serial number (if concatenated unique item identifier is used).

(10) Government's unit acquisition cost.

(11) Unit of measure.

(12) Type designation of the item as specified in the contract schedule, if any.

(13) Whether the item is an item of Special Tooling or Special Test Equipment.

(14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

(1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.

(2) Unique item identifier of the embedded subassembly, component, or part.

(3) Unique item identifier type.\*\*

(4) Issuing agency code (if concatenated unique item

identifier is used).\*\*

(5) Enterprise identifier (if concatenated unique item identifier is used).\*\*

(6) Original part number (if there is serialization within the original part number).\*\*

(7) Lot or batch number (if there is serialization within the lot or batch number).\*\*

(8) Current part number (optional and only if not the same as the original part number).\*\*

(9) Current part number effective date (optional and only if current part number is used).\*\*

(10) Serial number (if concatenated unique item identifier is used).\*\*

(11) Description.

\*\* Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) \_\_\_\_, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) Subcontracts. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

CONTRACT DEFINITIZATION (MAY 2023)

(a) A \_\_\_\_ [insert specific type of contract action] is contemplated. The Contractor agrees to begin promptly negotiating with the Contracting Officer the terms of a definitive contract that will include-

(1) All clauses required by the Federal Acquisition Regulation (FAR) on the date of execution of the undefinitized contract action;

(2) All clauses required by law on the date of execution of the definitive contract action; and

(3) Any other mutually agreeable clauses, terms, and conditions.

(b) The Contractor agrees to submit a \_\_\_\_ [insert type of proposal; e.g., fixed-price or cost-and-fee] proposal and certified cost or pricing data supporting its proposal. Notwithstanding FAR 52.216-26, Payments of Allowable Costs Before Definitization, failure to meet the qualifying proposal date in the contract definitization schedule could result in the Contracting Officer withholding an amount up to 5 percent of all subsequent requests for financing until the Contracting Officer determines that a proposal is qualifying.

(c) The schedule for definitizing this contract action is as follows [insert target date for definitization of the contract action and dates for submission of proposal, beginning of negotiations, and, if appropriate, submission of the make-or-buy and subcontracting plans and certified cost or pricing data]:

\_\_\_\_  
\_\_\_\_  
\_\_\_\_

(d) If agreement on a definitive contract action to supersede this undefinitized contract action is not reached by the target date in paragraph (c) of this clause, or within any extension of it granted by the Contracting Officer, the Contracting Officer may, with the approval of the head of the contracting activity, determine a reasonable price or fee in accordance with FAR subpart 15.4 and part 31, subject to Contractor appeal as provided in the Disputes clause. In any event, the Contractor shall proceed with completion of the contract, subject only to the Limitation of Government Liability clause.

(1) After the Contracting Officer's determination of price or fee, the contract shall be governed by-

(i) All clauses required by the FAR on the date of execution of this undefinitized contract action for either fixed-price or cost-reimbursement contracts, as determined by the Contracting Officer under this paragraph (e);

(ii) All clauses required by law as of the date of the Contracting Officer's determination; and

(iii) Any other clauses, terms, and conditions mutually agreed upon.

(2) To the extent consistent with paragraph (d)(1) of this clause, all clauses, terms, and conditions included in this undefinitized contract action shall continue in effect, except those that by their nature apply only to an undefinitized contract action.

(e) The definitive contract resulting from this undefinitized contract action will include a negotiated \_\_\_\_ [insert "cost/price ceiling" or "firm-fixed price"] in no event to exceed \_\_\_\_ [insert the not-to-exceed amount].

(End of clause)

**252.223-7007 Safeguarding Sensitive Conventional Arms, Ammunition, and Explosives.**

**(Nov 2023)**

SAFEGUARDING SENSITIVE CONVENTIONAL ARMS, AMMUNITION, AND EXPLOSIVES (NOV 2023)

(a) Definition. As used in this clause-

"Arms, ammunition, and explosives (AA&E)," means those items within the scope of DoD Manual 5100.76, Physical Security of Sensitive Conventional Arms, Ammunition, and Explosives.

(b) The requirements of DoD Manual 5100.76 apply to the following items of AA&E being developed, produced, manufactured, or purchased for the Government, or provided to the Contractor as Government-furnished property under this contract:

| NOMENCLATURE | NATIONAL STOCK NUMBER | SENSITIVITY/ CATEGORY |
|--------------|-----------------------|-----------------------|
| ____         | ____                  | ____                  |
| ____         | ____                  | ____                  |

(c) The Contractor shall comply with the requirements of DoD Manual 5100.76, as specified in the statement of work. The edition of DoD Manual 5100.76 in effect on the date of issuance of the solicitation for this contract shall apply.

(d) The Contractor shall allow representatives of the Defense Counterintelligence and Security Agency (DCSA) and representatives of other appropriate offices of the Government, access at all reasonable times into its facilities and those of its subcontractors, for the purpose of performing surveys, inspections, and investigations necessary to review compliance with the physical security standards applicable to this contract.

(e) The Contractor shall notify the cognizant DCSA field office of any subcontract involving AA&E within 10 days after award of the subcontract.

(f) Subcontracts. The Contractor shall ensure that the requirements of this clause are included in all subcontracts, at every tier-

(1) For the development, production, manufacture, or purchase of AA&E; or

(2) When AA&E will be provided to the subcontractor as Government-furnished property.

(g) Nothing in this clause shall relieve the Contractor of its responsibility for complying with applicable Federal, state, and local laws, ordinances, codes, and regulations (including requirements for obtaining licenses and permits) in connection with the performance of this contract.

(End of clause)

**252.225-7027 Restriction on Contingent Fees for Foreign Military Sales.**

**(Apr 2003)**

**RESTRICTION ON CONTINGENT FEES FOR FOREIGN MILITARY SALES**

(APR 2003)

(a) Except as provided in paragraph (b) of this clause, contingent fees, as defined in the Covenant Against Contingent Fees clause of this contract, are generally an allowable cost, provided the fees are paid to-

(1) A bona fide employee of the Contractor; or

(2) A bona fide established commercial or selling agency maintained by the Contractor for the purpose of securing business.

(b) For foreign military sales, unless the contingent fees have been identified and payment approved in writing by the foreign customer before contract award, the following contingent fees are unallowable under this contract:

(1) For sales to the Government(s) of \_\_\_\_\_, contingent fees in any amount.

(2) For sales to Governments not listed in paragraph (b)(1) of this clause, contingent fees exceeding \$50,000 per foreign military sale case.

(End of clause)

**252.225-7043 Antiterrorism/Force Protection for Defense Contractors Outside the United States.**

**(Jun 2015)**

As prescribed in 225.372-2, use the following clause:

**ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES (JUN 2015)**

(a) Definition. " United States ," as used in this clause, means, the 50 States, the District of Columbia , and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall-

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is-

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from <https://atep.dtic.mil>. (Contracting Officer to insert applicable information cited in PGI 225.372-1 (DFARS/PGI view)).

(End of clause)

**252.229-7001 Tax Relief.**

**(Apr 2020)**

**TAX RELIEF-BASIC (APR 2020)**

(a) Prices set forth in this contract are exclusive of all taxes and duties from which the United States Government is exempt by virtue of tax agreements between the United States Government and the Contractor's government. The following taxes or duties have been excluded from the contract price:

NAME OF TAX: \_\_\_\_ (Offeror insert)      RATE (PERCENTAGE): \_\_\_\_ (Offeror insert)

(b) Invoices submitted in accordance with the terms and conditions of this contract shall be exclusive of all taxes or duties for which relief is available. The Contractor's invoice shall list separately the gross price, amount of tax deducted, and net price charged.

(c) When items manufactured to United States Government specifications are being acquired, the Contractor shall identify the materials or components intended to be imported in order to ensure that relief from import duties is obtained. If the Contractor intends to use imported products from inventories on hand, the price of which includes a factor for import duties, the Contractor shall ensure the United States Government's exemption from these taxes. The Contractor may obtain a refund of the import duties from its government or request the duty-free import of an amount of supplies or components corresponding to that used from inventory for this contract.

(End of clause)

## Section J - List of Attachments

| Number | Attachment Name                                                                                         | Attachment Description          | Reference Identifier | Date           | Line Item |
|--------|---------------------------------------------------------------------------------------------------------|---------------------------------|----------------------|----------------|-----------|
| 01     | Attachment 1 - AIR<br>SPEC IM<br>FD2020-24-52553                                                        | Statement of Work               |                      | 05 May<br>2025 |           |
| 02     | Attachment 2 - USAF<br>Statement of Work -<br>Ammunition Data Cards<br>WARP 4-19-2018                   | Ammo Data Cards / Warp          |                      | 05 May<br>2025 |           |
| 03     | Attachment 3 - ES7035<br>Energetic Material<br>Description Sheets                                       | Energetic Material Description  |                      | 05 May<br>2025 |           |
| 04     | Attachment 4 - ES6200<br>Ammunition Data Cards                                                          | Ammo Data Cards                 |                      | 27 Feb<br>2025 |           |
| 05     | Attachment 5 - ES7034<br>Rework & Repair of Non-<br>Conforming Material                                 | Rework & Repair                 |                      | 05 May<br>2025 |           |
| 06     | Attachment 6 -<br>ES7650_Oct2000 - MIL-<br>STD-1916                                                     | MIL-STD-1916                    |                      | 05 May<br>2025 |           |
| 07     | Attachment 7 -<br>Government First Article<br>Testing                                                   | Gov. FA Testing                 |                      | 05 May<br>2025 |           |
| 08     | Attachment 8 -<br>Contractor First Article<br>Testing                                                   | Contractor FA Testing           |                      | 05 May<br>2025 |           |
| 09     | Attachment 9 - ES6925<br>MSE                                                                            | ES6925 MSE                      |                      | 27 Feb<br>2025 |           |
| 10     | Attachment 10 - Report<br>of Shipment                                                                   | Report of Shipment              |                      | 19 Mar<br>2025 |           |
| 11     | Attachment 11 -<br>REPSHIP                                                                              | REPSHIP                         |                      | 19 Mar<br>2025 |           |
| 12     | Attachment 12 - SPI<br>1370015904428                                                                    | SPI 1370015904428               |                      | 19 Mar<br>2025 |           |
| 13     | Attachment 13 - Data<br>List for Drawing<br>201825310                                                   | Data List for Drawing 201825310 |                      | 27 Feb<br>2025 |           |
| 14     | Attachment 14 -<br>Performance<br>Specification for MJU 76<br>Infrared<br>Countermeasure Flare<br>Rev B | Performance Specification       |                      | 15 Apr<br>2025 |           |
| 15     | Attachment 15 - Detail<br>Specification for<br>MJU-76B Infrared<br>Countermeasure Flare                 | Detail Specification            |                      | 15 Apr<br>2025 |           |
| 16     | Attachment 16 - Data<br>List for Drawing -MJU<br>76B<br>201825310_98747_DL_B                            | Data List for Drawing           |                      | 27 Feb<br>2025 |           |



|    |                                                                     |                               |  |             |  |
|----|---------------------------------------------------------------------|-------------------------------|--|-------------|--|
| 17 | Attachment 17 - Interim Hazard Classification Log No 23-208         | Interim Hazard Classification |  | 21 Aug 2023 |  |
| 18 | Attachment 18 - AF Form 260 MJU-76                                  | First Article Requirements    |  | 23 Jan 2025 |  |
| 19 | Attachment 19 - MJU-76 Ordering Procedures                          | Ordering Procedures           |  | 06 May 2025 |  |
| 20 | Attachment 20 - RFOP Worksheet – MJU-76                             | RFOP Worksheet                |  | 06 May 2025 |  |
| 21 | Attachment 21 - MJU 76 Contract Data Requirements List              | CDRLS                         |  | 06 May 2025 |  |
| 22 | Attachment 22 - GFP Worksheet Placeholder                           | GFP Info. Pending             |  | 06 May 2025 |  |
| 23 | Attachment 23 - Example Request for Order Proposal 5-6-25           | Example RFOP                  |  | 06 May 2025 |  |
| 24 | Attachment 24 - Justification for Qualification Requirements MJU-76 | Qualification Requirements    |  | 06 Mar 2025 |  |
| 25 | Attachment 25 - Section L v2 1-29-25                                | Section L                     |  | 29 Jan 2025 |  |
| 26 | Attachment 26 - Section M v2 1-29-25                                | Section M                     |  | 29 Jan 2025 |  |
| 27 | Attachment 27 - MJU-76 DD Form 254 Signed                           | DD Form 254                   |  | 07 May 2025 |  |

## Section K - Representations, Certification, & Other Statements

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                             | Effective Date | Alternate/<br>Deviation | Variation<br>Effective<br>Date |
|-----------|---------------------------------------------------------------------------------------------------|----------------|-------------------------|--------------------------------|
| 52.204-24 | Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment. | Nov 2021       |                         |                                |
| 52.204-29 | Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures.              | Dec 2023       |                         |                                |
| 52.240-90 | Security Prohibitions and Exclusions Representations and Certifications. (Deviation)              | Feb 2026       |                         |                                |

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                                                          | Effective Date | Alternate/<br>Deviation | Variation<br>Effective<br>Date |
|--------------|------------------------------------------------------------------------------------------------|----------------|-------------------------|--------------------------------|
| 252.203-7005 | Representation Relating to Compensation of Former DoD Officials.                               | Sep 2022       |                         |                                |
| 252.204-7008 | Compliance with Safeguarding Covered Defense Information Controls.                             | Oct 2016       |                         |                                |
| 252.225-7055 | Representation Regarding Business Operations with the Maduro Regime.                           | May 2022       |                         |                                |
| 252.225-7057 | Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.   | Aug 2022       |                         |                                |
| 252.225-7059 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation. | Jun 2023       |                         |                                |

### FAR Clauses Incorporated by Full Text

|          |                                                          |            |             |            |
|----------|----------------------------------------------------------|------------|-------------|------------|
| 52.204-8 | Annual Representations and Certifications. (Alternate I) | (Jan 2025) | Alternate I | (Mar 2023) |
|----------|----------------------------------------------------------|------------|-------------|------------|

Alternate I (Mar 2023). As prescribed in 4.1202(a), substitute the following paragraph (a) for paragraph (a) of the basic provision:

(a)(1) The North American Industry Classification System (NAICS) codes and corresponding size standards for this acquisition are as follows; the categories or portions these NAICS codes are assigned to are specified elsewhere in the solicitation:

| NAICS Code | Size standard |
|------------|---------------|
| 325920     | 750           |
| _____      | _____         |
| _____      | _____         |

[Contracting Officer to insert NAICS codes and size standards].

(2) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce, (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

|          |                                                                                  |            |                      |            |
|----------|----------------------------------------------------------------------------------|------------|----------------------|------------|
| 52.204-8 | Annual Representations and Certifications. (DEVIATION 2025-O0003 and 2025-O0004) | (Jan 2025) | Deviation 2025-O0004 | (Mar 2025) |
|----------|----------------------------------------------------------------------------------|------------|----------------------|------------|

Annual Representations and Certifications (MAR 2025)(DEVIATION 2025-O0003 and 2025-O0004)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 325920 [insert NAICS code].

(2) The small business size standard is 750 [insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) ☐ Paragraph (d) applies.

(ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

- (vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.
- (viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.
- (ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.
- (x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.
- (xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.
- (xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
- (A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.
- (B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.
- (C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.
- (xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
- (xiv) [Reserved]
- (xv) [Reserved]
- (xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.
- (xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.
- (xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.
- (xix) [Reserved]
- (xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.
- (xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.
- (A) If the acquisition value is less than \$50,000, the basic provision applies.
- (B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.
- (C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.
- (xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.
- (xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.
- (xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.
- (xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.
- (2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

[ ] (i) 52.204-17, Ownership or Control of Offeror.

[ ] (ii) 52.204-20, Predecessor of Offeror.

[ ] (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

[ ] (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Certification.

[ ] (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

[ ] (vi) 52.227-6, Royalty Information.

[ ] (A) Basic.

[ ] (B) Alternate I.

[ ] (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause # Title Date Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

**52.209-7 Information Regarding Responsibility Matters. (Deviation)**

**(Feb 2026)**

Information Regarding Responsibility Matters (Feb 2026) (Deviation)

(a) Definitions. As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [ ] has [ ] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

**52.209-13 Violation of Arms Control Treaties or Agreements-Certification. (Deviation)**

**(Feb 2026)**

Violation of Arms Control Treaties or Agreements-Certification (Feb 2026) (Deviation)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) Certification. [Offeror shall check either (1) or (2).]

[ ] (1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign

country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

[ ] (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

(i) An inability to certify compliance.

(ii) An inability to conclude compliance.

(iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless-

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under 22 U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) Remedies. The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

**52.225-18 Place of Manufacture.**

**(Aug 2018)**

Place of Manufacture (Aug 2018)

(a) Definitions. As used in this provision-

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

- (1) FPSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

(b) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(End of provision)

**52.230-1 Cost Accounting Standards Notices and Certification. (Deviation)**

**(Feb 2026)**

Cost Accounting Standards Notices and Certification (Feb 2026) (Deviation)

Note: This notice does not apply to small businesses or foreign governments. This notice is in three parts, identified by Roman numerals I through III.

Offerors shall examine each part and provide the requested information in order to determine Cost Accounting Standards (CAS) requirements applicable to any resultant contract.

If the offeror is an educational institution, part II does not apply unless the contemplated contract will be subject to full or modified CAS coverage pursuant to 48 CFR 9903.201-2(c)(5) or 9903.201-2(c)(6), respectively.

**I. Disclosure Statement-Cost Accounting Practices and Certification**

(a) Any contract in excess of the lower CAS threshold specified in Federal Acquisition Regulation (FAR) 30.205(b) resulting from this solicitation will be subject to the



requirements of the Cost Accounting Standards Board ( 48 CFR chapter 99), except for those contracts which are exempt as specified in 48 CFR 9903.201-1.

(b) Any offeror submitting a proposal which, if accepted, will result in a contract subject to the requirements of 48 CFR chapter 99 must, as a condition of contracting, submit a Disclosure Statement as required by 48 CFR 9903.202. When required, the Disclosure Statement must be submitted as a part of the offeror's proposal under this solicitation unless the offeror has already submitted a Disclosure Statement disclosing the practices used in connection with the pricing of this proposal. If an applicable Disclosure Statement has already been submitted, the offeror may satisfy the requirement for submission by providing the information requested in paragraph (c) of part I of this provision.

Caution: In the absence of specific regulations or agreement, a practice disclosed in a Disclosure Statement shall not, by virtue of such disclosure, be deemed to be a proper, approved, or agreed-to practice for pricing proposals or accumulating and reporting contract performance cost data.

(c) Check the appropriate box below:

(1) ☐ Certificate of Concurrent Submission of Disclosure Statement. The offeror hereby certifies that, as a part of the offer, copies of the Disclosure Statement have been submitted as follows:

(i) Original and one copy to the cognizant Administrative Contracting Officer (ACO) or cognizant Federal agency official authorized to act in that capacity (Federal official), as applicable; and

(ii) One copy to the cognizant Federal auditor.

(Disclosure must be on Form No. CASB DS-1 or CASB DS-2, as applicable. Forms may be obtained from the cognizant ACO or Federal official.)

Date of Disclosure Statement: \_\_\_\_ Name and Address of Cognizant ACO or Federal Official Where Filed: \_\_\_\_\_

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the Disclosure Statement.

(2) ☐ Certificate of Previously Submitted Disclosure Statement. The offeror hereby certifies that the required Disclosure Statement was filed as follows:

Date of Disclosure Statement: \_\_\_\_ Name and Address of Cognizant ACO or Federal Official Where Filed: \_\_\_\_\_

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the applicable Disclosure Statement.

(3) ☐ Certificate of Monetary Exemption. The offeror hereby certifies that the offeror, together with all divisions, subsidiaries, and affiliates under common control, did not receive net awards of negotiated prime contracts and subcontracts subject to CAS totaling \$50 million or more in the cost accounting period immediately preceding the period in which this proposal was submitted. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

(4) ☐ Certificate of Interim Exemption. The offeror hereby certifies that (i) the offeror first exceeded the monetary exemption for disclosure, as defined in (3) of this subsection, in the cost accounting period immediately preceding the period in which this offer was submitted and (ii) in accordance with 48 CFR 9903.202-1, the offeror is not yet required to submit a Disclosure Statement. The offeror further certifies that if an award resulting from this proposal has not been made within 90 days after the end of that period, the offeror will immediately submit a revised certificate to the Contracting Officer, in the form specified under paragraph (c)(1) or (c)(2) of part I of this provision, as appropriate, to verify submission of a completed Disclosure Statement.

Caution: Offerors currently required to disclose because they were awarded a CAS-covered prime contract or subcontract of \$50 million or more in the current cost accounting period may not claim this exemption (4). Further, the exemption applies only in connection with proposals submitted before expiration of the 90-day period following the cost accounting period in which the monetary exemption was exceeded.

## II. Cost Accounting Standards-Eligibility for Modified Contract Coverage

If the offeror is eligible to use the modified provisions of 48 CFR 9903.201-2(b) and elects to do so, the offeror shall indicate by checking the box below. Checking the box below shall mean that the resultant contract is subject to the Disclosure and Consistency of Cost Accounting Practices clause in lieu of the Cost Accounting Standards clause.

☐ The offeror hereby claims an exemption from the Cost Accounting Standards clause under the provisions of 48 CFR 9903.201-2(b) and certifies that the offeror is eligible for use of the Disclosure and Consistency of Cost Accounting Practices clause because during the cost accounting period immediately preceding the period in which this proposal was submitted, the offeror received less than \$50 million in awards of CAS-covered prime contracts and subcontracts. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

Caution: An offeror may not claim the above eligibility for modified contract coverage if this proposal is expected to result in the award of a CAS-covered contract of \$50 million or more or if, during its current cost accounting period, the offeror has been awarded a single CAS-covered prime contract or subcontract of \$50 million or more.

### III. Additional Cost Accounting Standards Applicable to Existing Contracts

The offeror shall indicate below whether award of the contemplated contract would, in accordance with paragraph (a)(3) of the Cost Accounting Standards clause, require a change in established cost accounting practices affecting existing contracts and subcontracts.

☐ Yes ☐ No

(End of provision)

#### 52.230-7 Proposal Disclosure-Cost Accounting Practice Changes.

(Apr 2005)

##### Proposal Disclosure-Cost Accounting Practice Changes (Apr 2005)

The offeror shall check "yes" below if the contract award will result in a required or unilateral change in cost accounting practice, including unilateral changes requested to be desirable changes.

☐ Yes ☐ No

If the offeror checked "Yes" above, the offeror shall-

- (1) Prepare the price proposal in response to the solicitation using the changed practice for the period of performance for which the practice will be used; and
- (2) Submit a description of the changed cost accounting practice to the Contracting Officer and the Cognizant Federal Agency Official as pricing support for the proposal.

(End of provision)

## DFARS Clauses Incorporated by Full Text

#### 252.204-7007 Alternate A, Annual Representations and Certifications.

(Oct 2024)

Alternate A (Oct 2024)

##### ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2024)

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (e) applies.

☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services-Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)-Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)-Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American-Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American-Free Trade Agreements-Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments-Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

| FAR/DFARS Provision # | Title | Date | Change |
|-----------------------|-------|------|--------|
|-----------------------|-------|------|--------|

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

**252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.**

**(May 2021)**

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense

Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [ ] will [ ] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

52.216-1 Type of Contract. (Deviation) (Feb 2026)

Type of Contract (Feb 2026) (Deviation)

The Government contemplates award of a \_\_\_\_ [Contracting Officer insert specific type of contract] contract resulting from this solicitation.

(End of provision)

**52.252-1 Solicitation Provisions Incorporated by Reference.**

**(Feb 1998)**

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

\_\_\_\_\_[Insert one or more Internet addresses]

(End of provision)

**52.252-3 Alterations in Solicitation.**

**(Apr 1984)**

Alterations in Solicitation (Apr 1984)

Portions of this solicitation are altered as follows:

\_\_\_\_ \_

(End of clause)

**52.252-5 Authorized Deviations in Provisions.**

**(Nov 2020)**

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any \_\_\_\_ [insert regulation name] (48 CFR Chapter \_\_\_\_ ) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

## **DFARS Clauses Incorporated by Full Text**

**252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements.**

**(Nov 2025)**

NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) Definitions. As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)," and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause

of this solicitation.

(b)(1) Cybersecurity Maturity Model Certification (CMMC) level. The CMMC level required by this solicitation is: \_\_\_\_ [Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC)]. This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) Plan of action and milestones. If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) CMMC unique identifiers. The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

**252.215-7008 Only One Offer.**

**(Dec 2022)**

As prescribed at 215.408(3), use the following provision:

**ONLY ONE OFFER (DEC 2022)**

(a) Cost or pricing data requirements. After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) Canadian Commercial Corporation. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable \_\_\_\_ [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) Subcontracts. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

**252.215-7009 Proposal Adequacy Checklist.****(Mar 2023)****PROPOSAL ADEQUACY CHECKLIST (MAR 2023)**

The offeror shall complete the following checklist, providing location of requested information, or an explanation of why the requested information is not provided. In preparation of the offeror's checklist, offerors may elect to have their prospective subcontractors use the same or similar checklist as appropriate.

**PROPOSAL ADEQUACY CHECKLIST**

| REFERENCES                                            | SUBMISSION ITEM                                                                     | PROPOSAL PAGE No.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | If not provided EXPLAIN (may use continuation pages) |
|-------------------------------------------------------|-------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------|
| <b>GENERAL INSTRUCTIONS</b>                           |                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                      |
| 1.                                                    | FAR 15.408, Table 15-2, Section I Paragraph A                                       | Is there a properly completed first page of the proposal per FAR 15.408 Table 15-2 I.A or as specified in the solicitation?                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | _____                                                |
| 2.                                                    | FAR 15.408, Table 15-2, Section I Paragraph A(7)                                    | Does the proposal identify the need for Government-furnished material/tooling/test equipment? Include the accountable contract number and contracting officer contact information if known.                                                                                                                                                                                                                                                                                                                                                                                                                                                    | _____                                                |
| 3.                                                    | FAR 15.408, Table 15-2, Section I Paragraph A(8)                                    | Does the proposal identify and explain notifications of noncompliance with Cost Accounting Standards Board or Cost Accounting Standards (CAS); any proposal inconsistencies with your disclosed practices or applicable CAS; and inconsistencies with your established estimating and accounting principles and procedures?                                                                                                                                                                                                                                                                                                                    | _____                                                |
| 4.                                                    | FAR 15.408, Table 15-2, Section I, Paragraph C(1) FAR 2.101, "Cost or pricing data" | Does the proposal disclose any other known activity that could materially impact the costs? This may include, but is not limited to, such factors as- (1) Vendor quotations; (2) Nonrecurring costs; (3) Information on changes in production methods and in production or purchasing volume; (4) Data supporting projections of business prospects and objectives and related operations costs; (5) Unit-cost trends such as those associated with labor efficiency; (6) Make-or-buy decisions; (7) Estimated resources to attain business goals; and (8) Information on management decisions that could have a significant bearing on costs. | _____                                                |
| 5.                                                    | FAR 15.408, Table 15-2, Section I Paragraph B                                       | Is an Index of all certified cost or pricing data and information accompanying or identified in the proposal provided and appropriately referenced?                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | _____                                                |
| 6.                                                    | FAR 15.403-1(b)                                                                     | Are there any exceptions to submission of certified cost or pricing data pursuant to FAR 15.403-1(b)? If so, is supporting documentation included in the proposal? (Note questions 18-20.)                                                                                                                                                                                                                                                                                                                                                                                                                                                     | _____                                                |
| 7.                                                    | FAR 15.408, Table 15-2, Section I Paragraph C(2)(i)                                 | Does the proposal disclose the judgmental factors applied and the mathematical or other methods used in the estimate, including those used in projecting from known data?                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | _____                                                |
| 8.                                                    | FAR 15.408, Table 15-2, Section I Paragraph C(2)(ii)                                | Does the proposal disclose the nature and amount of any contingencies included in the proposed price?                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | _____                                                |
| 9.                                                    | FAR 15.408 Table 15-2, Section II, Paragraph A or B                                 | Does the proposal explain the basis of all cost estimating relationships (labor hours or material) proposed on other than a discrete basis?                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | _____                                                |
| 10.                                                   | FAR 15.408, Table 15-2, Section I Paragraphs D and E                                | Is there a summary of total cost by element of cost and are the elements of cost cross-referenced to the supporting cost or pricing data? (Breakdowns for each cost element must be consistent with your cost accounting system, including breakdown by year.)                                                                                                                                                                                                                                                                                                                                                                                 | _____                                                |
| 11.                                                   | FAR 15.408, Table 15-2, Section I Paragraphs D and E                                | If more than one Contract Line Item Number (CLIN) or sub Contract Line Item Number (sub-CLIN) is proposed as required by the RFP, are there summary total amounts covering all line items for each element of cost and is it cross-referenced to the supporting cost or pricing data?                                                                                                                                                                                                                                                                                                                                                          | _____                                                |
| 12.                                                   | FAR 15.408, Table 15-2, Section I Paragraph F                                       | Does the proposal identify any incurred costs for work performed before the submission of the proposal?                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | _____                                                |
| 13.                                                   | FAR 15.408, Table 15-2, Section I Paragraph G                                       | Is there a Government forward pricing rate agreement (FPRA)? If so, the offeror shall identify the official submittal of such rate and factor data. If not, does the proposal include all rates and factors by year that are utilized in the development of the proposal and the basis for those rates and factors?                                                                                                                                                                                                                                                                                                                            | _____                                                |
| <b>COST ELEMENTS</b>                                  |                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                      |
| <b>MATERIALS AND SERVICES</b>                         |                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                      |
| 14.                                                   | FAR 15.408, Table 15-2, Section II Paragraph A                                      | Does the proposal include a consolidated summary of individual material and services, frequently referred to as a Consolidated Bill of Material (CBOM), to include the basis for pricing? The offeror's consolidated summary shall include raw materials, parts, components, assemblies, subcontracts and services to be produced or performed by others, identifying as a minimum the item, source, quantity, and price.                                                                                                                                                                                                                      | _____                                                |
| <b>SUBCONTRACTS (Purchased materials or services)</b> |                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                      |
| 15.                                                   | DFARS 215.404-3                                                                     | Has the offeror identified in the proposal those subcontractor proposals, for which the contracting officer has initiated or may need to request field pricing analysis?                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | _____                                                |
| 16.                                                   | FAR 15.404-3(c) FAR 52.244-2                                                        | Per the thresholds of FAR 15.404-3(c), Subcontract Pricing Considerations, does the proposal include a copy of the applicable subcontractor's certified cost or pricing data?                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | _____                                                |
| 17.                                                   | FAR 15.408, Table 15-2, Note 1; Section II Paragraph A                              | Is there a price/cost analysis establishing the reasonableness of each of the                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | _____                                                |



proposed subcontracts included with the proposal? If the offeror's price/cost analyses are not provided with the proposal, does the proposal include a matrix identifying dates for receipt of subcontractor proposal, completion of fact finding for purposes of price/cost analysis, and submission of the price/cost analysis?

#### EXCEPTIONS TO CERTIFIED COST OR PRICING DATA

18. FAR 52.215-20, FAR 2.101, "commercial product" or "commercial service" Has the offeror submitted an exception to the submission of certified cost or pricing data for commercial products or commercial services proposed either at the prime or subcontractor level, in accordance with provision 52.215-20? a. Has the offeror specifically identified the type of commercial product or commercial service claim (FAR 2.101 "commercial product" or "commercial service" definition), and the basis on which the commercial product or commercial service meets the definition? b. For modified commercial products (FAR 2.101 "commercial product" definition); did the offeror classify the modification(s) as either- i. A modification of a type customarily available in the commercial marketplace (paragraph (3)(i)); or ii. A minor modification (paragraph (3)(ii)) of a type not customarily available in the commercial marketplace made to meet Federal Government requirements not exceeding the thresholds in FAR 15.403-1(c)(3)(iii)(B)? c. For proposed commercial products "of a type", or "evolved" or modified (FAR 2.101 "commercial product" definition), did the contractor provide a technical description of the differences between the proposed item and the comparison item(s)?

19. [Reserved]

20. FAR 15.408, Table 15-2, Section II Paragraph A(1) Does the proposal support the degree of competition and the basis for establishing the source and reasonableness of price for each subcontract or purchase order priced on a competitive basis exceeding the threshold for certified cost or pricing data?

#### INTERORGANIZATIONAL TRANSFERS

21. FAR 15.408, Table 15-2, Section II Paragraph A.(2) For inter-organizational transfers proposed at cost, does the proposal include a complete cost proposal in compliance with Table 15-2?

22. FAR 15.408, Table 15-2, Section II Paragraph A(1) For inter-organizational transfers proposed at price in accordance with FAR 31.205-26(e), does the proposal provide an analysis by the prime that supports the exception from certified cost or pricing data in accordance with FAR 15.403-1?

#### DIRECT LABOR

23. FAR 15.408, Table 15-2, Section II Paragraph B Does the proposal include a time phased (i.e.; monthly, quarterly) breakdown of labor hours, rates and costs by category or skill level? If labor is the allocation base for indirect costs, the labor cost must be summarized in order that the applicable overhead rate can be applied.

24. FAR 15.408, Table 15-2, Section II Paragraph B For labor Basis of Estimates (BOEs), does the proposal include labor categories, labor hours, and task descriptions, (e.g.; Statement of Work reference, applicable CLIN, Work Breakdown Structure, rationale for estimate, applicable history, and time-phasing)?

25. FAR subpart 22.10 If covered by the Service Contract Labor Standards statute (41 U.S.C. chapter 67), are the rates in the proposal in compliance with the minimum rates specified in the statute?

#### INDIRECT COSTS

26. FAR 15.408, Table 15-2, Section II Paragraph C Does the proposal indicate the basis of estimate for proposed indirect costs and how they are applied? (Support for the indirect rates could consist of cost breakdowns, trends, and budgetary data.)

#### OTHER COSTS

27. FAR 15.408, Table 15-2, Section II Paragraph D Does the proposal include other direct costs and the basis for pricing? If travel is included does the proposal include number of trips, number of people, number of days per trip, locations, and rates (e.g. airfare, per diem, hotel, car rental, etc)?

28. FAR 15.408, Table 15-2, Section II Paragraph E If royalties exceed \$1,500 does the proposal provide the information/data identified by Table 15-2?

29. FAR 15.408, Table 15-2, Section II Paragraph F When facilities capital cost of money is proposed, does the proposal include submission of Form CASB-CMF or reference to an FPRA/FPRP and show the calculation of the proposed amount?

#### FORMATS FOR SUBMISSION OF LINE ITEM SUMMARIES

30. FAR 15.408, Table 15-2, Section III Are all cost element breakdowns provided using the applicable format prescribed in FAR 15.408, Table 15-2 III? (or alternative format if specified in the request for proposal)

31. FAR 15.408, Table 15-2, Section III Paragraph B If the proposal is for a modification or change order, have cost of work deleted (credits) and cost of work added (debits) been provided in the format described in FAR 15.408, Table 15-2.III.B?

32. FAR 15.408, Table 15-2, Section III Paragraph C For price revisions/redeterminations, does the proposal follow the format in FAR 15.408, Table 15-2.III.C?

#### OTHER

33. FAR 16.4 If an incentive contract type, does the proposal include offeror proposed target cost, target profit or fee, share ratio, and, when applicable, minimum/maximum fee, ceiling price?

34. FAR 16.203-4 and FAR 15.408 Table 15-2, Section II, Paragraphs A, B, C, and D If Economic Price Adjustments are being proposed, does the proposal show the rationale and application for the economic price adjustment?

35. FAR 52.232-28 If the offeror is proposing Performance-Based Payments did the offeror comply with FAR 52.232-28?

36. FAR 15.408(n) FAR 52.215-22 FAR 52.215-23 Excessive Pass-through Charges- Identification of Subcontract Effort: If the offeror intends to subcontract more than 70% of the total cost of work to be performed, does the proposal identify: (i) the amount of the offeror's indirect costs and profit applicable to the work to be performed by the proposed subcontractor(s); and (ii) a description of the added value provided by the offeror as related to the work to be performed by the proposed subcontractor(s)?

(End of provision)

## Section M - Evaluation Factors for Award

### FAR Clauses Incorporated by Reference

| Number    | Title                              | Effective Date | Alternate/<br>Deviation | Variation<br>Effective<br>Date |
|-----------|------------------------------------|----------------|-------------------------|--------------------------------|
| 52.217-5  | Evaluation of Options. (Deviation) | Feb 2026       |                         |                                |
| 52.247-47 | Evaluation-F.o.b. Origin.          | Jun 2003       |                         |                                |